

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 555

BY LOCAL GOVERNMENT COMMITTEE

AN ACT

RELATING TO SOLID WASTE FACILITIES; AMENDING SECTION 39-105, IDAHO CODE, TO
REVISE PROVISIONS REGARDING THE POWERS AND DUTIES OF THE DIRECTOR OF THE
IDAHO DEPARTMENT OF ENVIRONMENTAL QUALITY; AMENDING SECTION 39-414,
IDAHO CODE, TO REVISE PROVISIONS REGARDING THE POWERS AND DUTIES OF
THE DISTRICT BOARD OF HEALTH; AMENDING SECTION 39-7401, IDAHO CODE, TO
REVISE LEGISLATIVE FINDINGS AND PURPOSES OF THE SOLID WASTE FACILITIES
ACT; AMENDING SECTION 39-7402, IDAHO CODE, TO REVISE PROVISIONS RE-
GARDING THE APPLICABILITY OF THE ACT; AMENDING SECTION 39-7403, IDAHO
CODE, TO REVISE DEFINITIONS; AMENDING SECTION 39-7404, IDAHO CODE, TO
REVISE PROVISIONS REGARDING CONSISTENCY WITH FEDERAL LAW; AMENDING
SECTION 39-7406, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE RESPEC-
TIVE ROLES OF COUNTY, DIRECTOR, AND HEALTH DISTRICT; AMENDING SECTION
39-7408, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE SITE CERTIFI-
CATION PROCESS; REPEALING SECTION 39-7408A, IDAHO CODE, RELATING TO
SITE CERTIFICATION PROCEDURES FOR COMMERCIAL SOLID WASTE FACILITIES;
REPEALING SECTION 39-7408B, IDAHO CODE, RELATING TO SITE REVIEW PAN-
ELS; REPEALING SECTION 39-7408C, IDAHO CODE, RELATING TO SITING LICENSE
APPLICATIONS; REPEALING SECTION 39-7408D, IDAHO CODE, RELATING TO THE
DUTIES OF THE DIRECTOR RELATIVE TO SITING APPLICATIONS; AMENDING CHAP-
TER 74, TITLE 39, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 39-7409,
IDAHO CODE, TO ESTABLISH PROVISIONS FOR CO-LOCATED WASTE FACILITIES;
AMENDING SECTION 39-7409, IDAHO CODE, TO REVISE PROVISIONS REGARDING
THE STANDARDS FOR DESIGN AND TO REDESIGNATE THE SECTION; AMENDING SEC-
TION 39-7410, IDAHO CODE, TO REVISE PROVISIONS REGARDING GROUND WATER
MONITORING DESIGN AND TO REDESIGNATE THE SECTION; AMENDING SECTION
39-7411, IDAHO CODE, TO REVISE PROVISIONS REGARDING DESIGN REVIEW PRO-
CEDURES AND TO REDESIGNATE THE SECTION; AMENDING SECTION 39-7412, IDAHO
CODE, TO REVISE PROVISIONS REGARDING STANDARDS FOR OPERATION AND TO RE-
DESIGNATE THE SECTION; AMENDING SECTION 39-7413, IDAHO CODE, TO REVISE
PROVISIONS REGARDING OPERATIONS PLAN REVIEWS AND TO REDESIGNATE THE
SECTION; AMENDING SECTION 39-7414, IDAHO CODE, TO REVISE PROVISIONS RE-
GARDING ASSESSMENT MONITORING AND CORRECTIVE ACTION AND TO REDESIGNATE
THE SECTION; AMENDING SECTION 39-7415, IDAHO CODE, TO REVISE PROVISIONS
REGARDING STANDARDS FOR CLOSURE AND TO REDESIGNATE THE SECTION; AMEND-
ING SECTION 39-7416, IDAHO CODE, TO REVISE PROVISIONS REGARDING STAN-
DARDS FOR POST-CLOSURE CARE AND TO REDESIGNATE THE SECTION; AMENDING
SECTION 39-7417, IDAHO CODE, TO REVISE PROVISIONS REGARDING FINANCIAL
ASSURANCE FOR CLOSURE, POST-CLOSURE CARE, AND CORRECTIVE ACTION AND
TO REDESIGNATE THE SECTION; AMENDING SECTION 39-7418, IDAHO CODE, TO
REVISE PROVISIONS REGARDING MODIFICATIONS TO SITES APPROVED UNDER THE
CHAPTER AND TO REDESIGNATE THE SECTION; AMENDING CHAPTER 74, TITLE 39,
IDAHO CODE, BY THE ADDITION OF A NEW SECTION 39-7420, IDAHO CODE, TO ES-
TABLISH GENERAL PROVISIONS FOR THE APPLICATION PROCESS; AMENDING CHAP-
TER 74, TITLE 39, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 39-7421,

IDAHO CODE, TO ESTABLISH PROVISIONS FOR PUBLIC REVIEW AND APPROVAL OF APPLICATIONS; AMENDING CHAPTER 74, TITLE 39, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 39-7422, IDAHO CODE, TO ESTABLISH PROVISIONS FOR ADMINISTRATIVE REVIEW AND APPROVAL OF APPLICATIONS; AMENDING CHAPTER 74, TITLE 39, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 39-7423, IDAHO CODE, TO ESTABLISH PROVISIONS FOR RECONCILIATION PROCEDURES AND ADMINISTRATIVE AND JUDICIAL REVIEW; AMENDING CHAPTER 74, TITLE 39, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 39-7424, IDAHO CODE, TO IMPOSE FEES; AMENDING CHAPTER 74, TITLE 39, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 39-7425, IDAHO CODE, TO ESTABLISH PROVISIONS FOR THE COLLECTION OF FEES AND REPORTING; AMENDING CHAPTER 74, TITLE 39, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 39-7426, IDAHO CODE, TO ESTABLISH THE SOLID WASTE REGULATORY FUND; AMENDING SECTION 39-7419, IDAHO CODE, TO REVISE PROVISIONS REGARDING INSPECTIONS AND TO REDESIGNATE THE SECTION; AMENDING CHAPTER 74, TITLE 39, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 39-7428, IDAHO CODE, TO PROVIDE FOR ADDITIONS AND PENALTIES; AMENDING SECTION 39-7420, IDAHO CODE, TO REVISE PROVISIONS REGARDING VIOLATIONS AND ENFORCEMENT AND TO REDESIGNATE THE SECTION; AMENDING SECTION 39-7421, IDAHO CODE, TO REVISE PROVISIONS REGARDING RESEARCH, DEVELOPMENT, AND DEMONSTRATION PERMITS AND TO REDESIGNATE THE SECTION; AMENDING SECTION 39-107D, IDAHO CODE, TO CORRECT A CODE REFERENCE; AMENDING SECTION 39-7204, IDAHO CODE, TO CORRECT A CODE REFERENCE; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 39-105, Idaho Code, be, and the same is hereby amended to read as follows:

39-105. POWERS AND DUTIES OF THE DIRECTOR. ~~The director shall have the following powers and duties: (1) All~~ (1) The director shall have all of the rights, powers, and duties regarding environmental protection functions, including but not limited to those provided by chapters 1, 4, 30, 36, 44, 58, 65, 66, 70, 71, 72, and 74, title 39, Idaho Code. The director shall have all such powers and duties as described in this section as may have been or could have been exercised by his predecessors in law and shall be the successor in law to all contractual obligations entered into by predecessors in law. All hearings of the director shall be governed by the provisions of chapter 52, title 67, Idaho Code.

(2) The director shall, pursuant and subject to the provisions of the Idaho Code ~~and the provisions of this act~~, formulate and recommend to the board rules, as may be necessary, to deal with problems related to water pollution, air pollution, solid waste disposal, and licensure and certification requirements pertinent thereto, which shall, upon adoption by the board, have the force of law relating to any purpose that may be necessary and feasible for enforcing the provisions of this act, including but not limited to the prevention, control, or abatement of environmental pollution or degradation including radionuclides and risks to public health related to any of the powers and duties described in this section. Any such rule may be of general application throughout the state or may be limited as to

1 times, places, circumstances, or conditions in order to make due allowance
2 for variations therein.

3 (3) The director, under the rules adopted by the board, shall have the
4 general supervision of the promotion and protection of the environment of
5 this state. The powers and duties of the director shall include but not be
6 limited to the following:

7 (a) The issuance of licenses and permits as prescribed by law and by the
8 rules of the board promulgated hereunder. For each air quality oper-
9 ating permit issued under title V of the federal clean air act and its
10 implementing regulations, the director shall, consistent with the fed-
11 eral clean air act and its implementing regulations, expressly include
12 a provision stating that compliance with the conditions of the permit
13 shall be deemed compliance with the applicable requirements of the fed-
14 eral clean air act and the title V implementing regulations. The di-
15 rector may develop and issue general permits covering numerous similar
16 sources, as authorized by 40 CFR 70.6(d), as amended, and as appropri-
17 ate.

18 (b) The enforcement of rules relating to public water supplies and ad-
19 ministration of the drinking water loan fund pursuant to chapter 76, ti-
20 tle 39, Idaho Code, including making loans to eligible public drink-
21 ing water systems, as defined in the federal safe drinking water act,
22 as amended, and to comply with all requirements ~~of the act, 42 U.S.C.~~
23 ~~300f et seq.,~~ and regulations promulgated pursuant to the act. This in-
24 cludes but is not limited to: the development ~~of~~ and implementation of
25 a capacity development strategy to ensure public drinking water systems
26 have the technical, managerial, and financial capability to comply with
27 the national primary drinking water regulations, and the enhancement of
28 protection of source waters for public drinking water systems.

29 (c) The establishment of liaison with other governmental departments,
30 agencies, and boards in order to effectively assist other governmental
31 entities with planning for the control ~~of~~ or abatement of environmental
32 pollution. All of the rules adopted by the board hereunder shall apply
33 to state institutions.

34 (d) The supervision and administration of a system to safeguard air
35 quality and to limit and control the emission of air contaminants.

36 (e) The supervision and administration of a system to safeguard the
37 quality of the waters of this state, including but not limited to the en-
38 forcement of rules relating to the discharge of effluent into the waters
39 of this state and the storage, handling, and transportation of solids,
40 liquids, and gases that may cause or contribute to water pollution. For
41 purposes of complying with the clean water act, the director may provide
42 an exemption from additional reductions for those nonpoint sources that
43 meet the applicable reductions set forth in an approved TMDL, as defined
44 in chapter 36, title 39, Idaho Code.

45 (f) The supervision and administration of administrative units whose
46 responsibility shall be to assist and encourage counties, cities, other
47 governmental units, and industries in the control and abatement of en-
48 vironmental pollution.

49 (g) The supervision and administration of a solid waste disposal site
50 and design review program and issuance of approvals, licenses, and per-

mits in accordance with the provisions of ~~chapters 4 and the~~ Idaho solid waste facilities act, chapter 74, title 39, Idaho Code, and, in particular, as follows:

- (i) ~~The issuance of a solid waste disposal site certificate in the manner provided in chapter 74, title 39, Idaho Code. Issuing solid waste disposal site certificates;~~
- (ii) ~~Providing review and approval regarding of the design of solid waste disposal facilities and ground water monitoring systems and approval of all applications for flexible standards as provided for in 40 CFR 258, in accordance with the provisions of chapter 74, title 39, Idaho Code.;~~
- (iii) ~~Cooperating and coordinating with operational monitoring of solid waste disposal sites by district health departments pursuant to authority established in chapters 4 and 74, title 39, Idaho Code. Providing review and approval of solid waste facility operation, closure, post-closure, and financial assurance plans;~~
- (iv) ~~Enforcing solid waste management operations and the provisions of chapter 74, title 39, Idaho Code, rules promulgated pursuant thereto, and applicable federal law and regulations;~~
- (v) ~~Developing and administering the research, development, and demonstration program, which is to be implemented as a part of the existing approved solid waste program, upon approval of the United States environmental protection agency; and~~
- ~~(iv) (vi) Developing and proposing Promulgating rules, as necessary, subject to legislative approval, to supplement details of compliance with the Idaho solid waste facilities act and applicable federal regulations, provided that such regulations rules shall not conflict with the provisions of this act or be more strict than the requirements established in federal law or in the solid waste facilities act or be more stringent than applicable state law, including the provisions of chapter 74, title 39, Idaho Code, and applicable federal law and regulations.~~
- (h) The establishment, administration, and operation of:
 - (i) A network of environmental monitoring stations, independent of the United States department of energy, within and around the facilities of the Idaho national laboratory to provide authoritative auditing and analysis of emissions, discharges, or releases of pollutants to the environment, including the air, water, and soil from such facilities; and
 - (ii) Programs within the department to utilize the data obtained from such monitoring, and any other relevant data, in the enforcement of applicable agreements, statutes, and rules pertaining to such facilities and programs, to review, analyze, and participate in remedial decisions and other proposed actions and projects, and to ensure the protection of public health and the environment.;
 - and
 - (iii) ~~The director shall also~~ A program to monitor the implementation of agreements between the United States and the state of Idaho related to the operation and environmental protection obligations of the Idaho national laboratory and provide periodic in-

formation to the governor, the attorney general, the legislature, and the people of Idaho concerning compliance with such agreements and obligations. The director shall have the power to enter into agreements with the United States department of energy in order to carry out the duties and authorities provided in this subsection.

(i) The enforcement of all laws, rules, regulations, codes, and standards relating to environmental protection and health.

(j) The enhancement and protection of source waters of the state pursuant to rules of the board.

(4) The director, when so designated by the governor, shall have the power to apply for, receive on behalf of the state, and utilize any federal aid, grants, gifts, gratuities, or moneys made available through the federal government, including but not limited to the federal water pollution control act, for use in or by the state of Idaho in relation to health and environmental protection.

(5) (a) The director shall have the power to enter into and make contracts and agreements with any public ~~agencies~~ agency or municipal ~~corporations~~ corporation for facilities, land, and equipment when such use will have a beneficial or recreational effect or be in the best interest in carrying out the duties imposed on the department.

(b) The director shall ~~also~~ have the power to enter into contracts for the expenditure of state matching funds for local purposes. This subsection will constitute the authority for public agencies or municipal corporations to enter into such contracts and expend money for the purposes delineated in such contracts.

(c) The director shall ~~also~~ have the power to enter into and make voluntary contracts and agreements with public agencies, municipal corporations, and private parties for funding or reimbursement of staff and consultant costs necessary for the director to discharge his duties as provided by state statute and administrative rule. Such contracts and agreements shall be limited to a five (5) year term, ~~however they~~ but can be renewed upon agreement of all parties. Moneys received through these contracts and agreements shall be expended pursuant to appropriation.

(6) The director is authorized to adopt an official seal to be used on appropriate occasions, in connection with the functions of the department or the board, and such seal shall be judicially noticed. Copies of any books, records, papers, or other documents in the department shall be admitted in evidence equally with the originals thereof when authenticated under such seal.

SECTION 2. That Section 39-414, Idaho Code, be, and the same is hereby amended to read as follows:

39-414. POWERS AND DUTIES OF DISTRICT BOARD. The district board of health shall have and may exercise the following powers and duties:

(1) To administer and enforce all state and district health laws, regulations, and standards.

(2) To undertake only those actions that are necessary and reasonable for preserving and protecting public health and preventive health as supported by scientific evidence. ~~Additionally, the~~ The board may enter into agreements with the director of the state department of health and welfare or

1 the director of the department of environmental quality to provide services
2 or do such other things as specified in the agreement, subject to the limi-
3 tations described in this subsection. An agreement entered pursuant to this
4 subsection may be between either such director and one (1) district or mul-
5 tiple districts. An order of a district board of health will take effect im-
6 mediately. ~~However, notwithstanding~~ Notwithstanding the provisions of this
7 subsection, if an order applies to all persons in a county or a public health
8 district, the board of county commissioners within each affected county, af-
9 ter consulting with the district board of health, ~~will~~ shall determine, by
10 resolution, whether or not to approve the order within county limits within
11 seven (7) days of the date of the order. If the board of county commissioners
12 approves the order, then the order will take effect immediately for a period
13 of thirty (30) days. Thereafter, the order may be extended, amended, or mod-
14 ified and reimposed for thirty (30) day periods, subject to approval by the
15 board of county commissioners.

16 (3) To determine the location of its main office and to determine the
17 location, if any, of branch offices.

18 (4) To enter into contracts with any other governmental or public
19 agency whereby the district board agrees to render services to or for such
20 agency in exchange for a charge reasonably calculated to cover the cost of
21 rendering such service. This authority is to be limited to services vol-
22 untarily rendered and voluntarily received and shall not apply to services
23 required by statute, rule, and regulation or by standards promulgated pur-
24 suant to this chapter or chapter 1, title 39, Idaho Code.

25 (5) To deposit all moneys or payment received or collected by gift,
26 grant, devise, or any other way to the respective division or subaccount of
27 the public health district in the public health district fund authorized by
28 section 39-422, Idaho Code.

29 (6) To establish a fiscal control policy.

30 (7) To cooperate with the state board of health and welfare, the depart-
31 ment of health and welfare, the board of environmental quality, and the de-
32 partment of environmental quality.

33 (8) To enter into contracts with other governmental agencies, and this
34 chapter hereby authorizes such other agencies to enter into contracts with
35 the health district, as may be deemed necessary to fulfill the duties imposed
36 upon the district in providing for the health of the citizens within the dis-
37 trict.

38 (9) To purchase, exchange, or sell real property and construct, rent,
39 or lease such buildings as may be required for the accomplishment of the
40 duties imposed upon the district and to further obtain such other personal
41 property as may be necessary to its functions.

42 (10) To accept, receive, and utilize any gifts, grants, or funds and
43 personal and real property that may be donated to it for the fulfillment of
44 the purposes outlined in this chapter.

45 (11) To establish a charge whereby the board agrees to render services
46 to or for entities other than governmental or public agencies for an amount
47 reasonably calculated to cover the cost of rendering such services.

48 (12) To enter into a lease of real or personal property as lessor or
49 lessee, or other transaction, with the Idaho health facilities authority for
50 a term not to exceed ninety-nine (99) years upon a determination by the dis-

1 trict board that the real or personal property to be leased is necessary for
 2 the purposes of the district and to pledge nontax revenues of the district
 3 to secure the district's obligations under such leases. For the purposes of
 4 this chapter, a public health district is not a subdivision of the state and
 5 shall be considered an independent body corporate and politic pursuant to
 6 section 1, article VIII of the constitution of the state of Idaho and is not
 7 authorized hereby to levy taxes or to obligate the state of Idaho concerning
 8 such financing.

9 ~~(13) To administer and certify solid waste disposal site operations,~~
 10 ~~closure, and post-closure procedures established by statute or regulation~~
 11 ~~in accordance with the provisions of chapter 74, title 39, Idaho Code, in~~
 12 ~~a manner equivalent to the site certification process set forth in section~~
 13 ~~39-7408, Idaho Code.~~

14 ~~(14)~~ (13) To select a board member to serve as trustee on the board of
 15 trustees of the Idaho district boards of health.

16 SECTION 3. That Section 39-7401, Idaho Code, be, and the same is hereby
 17 amended to read as follows:

18 39-7401. LEGISLATIVE FINDINGS AND PURPOSES. (1) The legislature
 19 finds:

20 (a) That adverse public health and environmental impacts can result
 21 from the improper land disposal of solid waste and that the need for es-
 22 tablishing safe sites with adequate capacity for the disposal of solid
 23 waste is a matter of statewide concern and necessity; and

24 (b) That the resource conservation and recovery act, 42 U.S.C. sec.
 25 6901, et seq., as amended, and regulations adopted pursuant thereto,
 26 establish complex, detailed, and costly provisions for the location,
 27 design, operation, and monitoring of solid waste disposal sites, in-
 28 cluding such sites as may be operated pursuant to the responsibility es-
 29 tablished in chapter 44, title 31, Idaho Code; and

30 (c) That a state program to implement flexible standards provided in
 31 40 CFR 258, if approved by the U.S. environmental protection agency,
 32 enables a state to take advantage of site specific factors in the de-
 33 sign and, operation, closure, post-closure, and financial assurance of
 34 solid waste facilities and flexibility in meeting federal criteria set
 35 forth in that regulation; and

36 (d) That 40 CFR 258 provides that such a program of flexible standards
 37 requires approvals by a designated state agency; and

38 (e) That chapter 1, title 39, Idaho Code, vests the Idaho department of
 39 environmental quality with the responsibility to issue a certificate of
 40 suitability concerning prospective solid waste landfill sites, to ap-
 41 prove solid waste facility design and ground water monitoring programs,
 42 and to provide approvals pursuant to 40 CFR 258; and

43 (f) That chapter 44, title 31, Idaho Code, imposes on the counties the
 44 primary responsibility for the development and operation of a solid
 45 waste management system; and

46 (g) That chapter 4 74, title 39, Idaho Code, vests the ~~health districts~~
 47 Idaho department of environmental quality with the ~~primary~~ responsi-
 48 bility for the review and approval of solid waste facility ~~operations~~

1 ~~plans~~ operations, closure, post-closure, and corrective action plans,
2 and the enforcement of solid waste management operations; and

3 (h) That the coordination and timeliness of response to federal law on
4 the part of all public officials within the state is critical to compli-
5 ance with federal regulations, the ability of each affected agency to
6 carry out their statutory responsibilities, and the avoidance of exces-
7 sive construction and public expenditures.

8 (2) Therefore, it is the intent of the legislature to establish a
9 program of solid waste management which complies with ~~40 CFR 258~~ federal
10 regulations and facilitates the incorporation of flexible standards in
11 facility design and, operations, closure, post-closure, and corrective ac-
12 tion. The legislature hereby establishes the solid waste disposal standards
13 and procedures outlined herein and a facility approval process for the state
14 of Idaho, the political subdivisions thereof, and any private solid waste
15 disposal site owner in order to facilitate the development and operation of
16 solid waste disposal sites, ~~to~~ effect timely and responsible completion of
17 statutory duties, ~~and to~~ ensure protection of human health and the environ-
18 ment, ~~to~~ and protect the air, land, and waters of the state of Idaho.

19 SECTION 4. That Section 39-7402, Idaho Code, be, and the same is hereby
20 amended to read as follows:

21 39-7402. APPLICABILITY. (1) The standards and procedures set forth in
22 this chapter apply to owners and operators of new municipal solid waste land-
23 fill (MSWLF) units, existing MSWLF units, and lateral expansions of existing
24 MSWLF units, except as otherwise specifically provided.

25 (2) The requirements of this chapter do not apply to MSWLF units that
26 ceased to accept waste on or prior to October 9, 1991.

27 (3) MSWLF units that receive waste after October 9, 1991, but stop
28 receiving waste in conformance with the provisions of 40 CFR 258.1(d), are
29 exempt from the requirements of this chapter, except as expressly provided
30 herein.

31 (4) All MSWLF units that receive waste on or after October 9, 1993, must
32 comply with all of the requirements of this chapter, unless otherwise al-
33 lowed in 40 CFR 258.1(d), (e), or (f).

34 (5) MSWLF units failing to satisfy these standards shall cease oper-
35 ation and shall not accept ~~municipal~~ solid waste for disposal by order of
36 the department of environmental quality ~~and/or the district health depart-~~
37 ~~ment~~ until provisions of this chapter are complied with, unless a compliance
38 schedule or corrective action plan has been approved by the director of the
39 department of environmental quality ~~and/or the district health department.~~

40 (6) MSWLF units failing to satisfy the requirements set forth in this
41 chapter are considered open dumps for purposes of state solid waste manage-
42 ment planning and are prohibited under section 4005 of RCRA.

43 (7) MSWLF units containing sewage sludge and which fail to satisfy the
44 criteria set forth in 40 CFR 258 violate sections 309 and 405(e) of the clean
45 water act.

46 SECTION 5. That Section 39-7403, Idaho Code, be, and the same is hereby
47 amended to read as follows:

39-7403. DEFINITIONS. As used in this chapter:

(1) "Active portion" means that part of a facility or unit that has received or is receiving wastes and that has not been closed in accordance with 40 CFR 258.60.

(2) "Agricultural wastes" means wastes generated on farms resulting from the production of agricultural products including, but not limited to, manures and carcasses of dead animals weighing each or collectively in excess of fifteen (15) pounds but ~~do~~ does not include wastes that are classified as hazardous.

(3) "Applicant" means the owner or the operator with the owner's written consent.

(4) "Aquifer" means a geological formation, group of formations, or a portion of a formation capable of yielding significant quantities of ground water to wells or springs.

(5) "Board" means the Idaho board of environmental quality.

(6) "Buffer zone" means that part of a facility that lies between the active portion and the property boundary.

(7) "Clean soils and clean dredge spoils" means soils and dredge spoils which are not hazardous wastes ~~or problem wastes as defined in this section~~ and do not pose a significant risk to human health or the environment.

(8) "Co-located waste facilities" or "CWF" means facilities that accept both household waste and nonmunicipal solid waste in separate waste management units on geographically contiguous property that, separately, are subject to the provisions of this title and rules promulgated pursuant thereto.

~~(8)~~ (9) "Commercial solid waste" means all types of solid waste generated by stores, offices, restaurants, warehouses, and other nonmanufacturing activities, excluding residential and industrial wastes.

~~(9) "Commercial solid waste facility" means a facility owned and operated as an enterprise conducted with the intent of making a profit by any individual, association, firm, or partnership for the disposal of solid waste, but excludes a facility owned or operated by a political subdivision, state or federal agency, municipality or a facility owned or operated by any individual, association, firm or partnership exclusively for the disposal of solid waste generated by such individual, association, firm or partnership.~~

(10) "Construction/demolition waste" means the waste building materials, packaging, and rubble resulting from construction, remodeling, repair, and demolition operations on pavements, houses, commercial buildings, and other structures. Such waste includes, but is not limited to, bricks, concrete, other masonry materials, soil, rock, lumber, road spoils, rebar, paving materials, and tree stumps. Noninert wastes and asbestos wastes are not considered to be demolition waste for the purposes of this chapter.

(11) "Contaminate" means to allow discharge of a substance from a landfill that would cause:

(a) The concentration of that substance in the ground water to exceed the maximum contamination level (MCL) specified in ~~40 CFR 258.40~~, Idaho drinking water standards or federal regulations; or

(b) A statistically significant increase in the concentration of that substance in the ground water where the existing concentration of that

substance exceeds the maximum contamination level specified in paragraph (a) of this subsection; or

(c) A statistically significant increase above background in the concentration of a substance which:

(i) ~~is~~ Is not specified in paragraph (a) of this subsection; and

(ii) ~~is~~ Is a result of the disposal of solid waste; and

(iii) ~~has~~ Has been determined by the department to present a substantial risk to human health or the environment in the concentrations found at the point of compliance.

(12) "County" means any county in the state of Idaho.

(13) "Cover material" means soil or other suitable material that is used to protect the active portion of the MSWLF unit.

(14) "Department" means the Idaho department of environmental quality.

~~(14)~~ (15) "Director" means the director of the Idaho department of environmental quality.

~~(15)~~ (16) "Existing MSWLF unit" means any municipal solid waste landfill unit that is receiving solid waste as of the applicable date specified in 40 CFR 258.1(e).

~~(16)~~ (17) "Facility" means all contiguous land and structures, buffer zones, and other appurtenances and improvements on the land used for the disposal of solid waste.

~~(17)~~ (18) "Floodplain" means the area encompassed by the one hundred (100) year flood as defined by applicable federal emergency management agency (FEMA) flood insurance maps or, if no map exists, then as defined in 40 CFR 258.11.

~~(18)~~ (19) "Ground water" means water below the land surface in a zone of saturation.

~~(19) "Health district" means one (1) of the seven (7) district health departments of the state of Idaho.~~

(20) "Holocene fault" means a fault characterized as a fracture or a zone of fractures in any material along which strata on one (1) side have been displaced with respect to that on the other side and holocene being the most recent epoch of the quaternary period, extending from the end of the pleistocene epoch to the present.

(21) "Household waste" means any solid waste, including garbage, trash, and sanitary waste in septic tanks, derived from households, including single and multiple residences, hotels and motels, bunkhouses, ranger stations, crew quarters, campgrounds, picnic grounds, and day use recreation areas.

(22) "Industrial solid waste" means solid waste generated by manufacturing or industrial processes that is not a hazardous waste regulated under subtitle C of RCRA. Such waste may include, but is not limited to, waste resulting from the following manufacturing processes: electric power generation; fertilizer and agricultural chemicals; food and related products and byproducts; inorganic chemicals; iron and steel manufacturing; leather and leather products; nonferrous metals manufacturing/foundries; organic chemicals; plastics and resins manufacturing; pulp and paper industry; rubber and miscellaneous plastic products; stone, glass, clay and concrete products; textile manufacturing; transportation equipment; and water treatment. This term does not include mining waste or oil and gas waste.

(23) "Inert wastes" means noncombustible, nonhazardous, nonputrescible, nonleaching solid wastes that are likely to retain their physical and chemical structure under expected conditions of disposal, including resistance to biological attack.

(24) "Landfill" means an area of land or an excavation in which wastes are placed for permanent disposal, and that is not a land application unit, surface impoundment, injection well, or waste pile.

(25) "Landspreading disposal facility" or "land application unit" means a facility that applies sludges or other solid wastes onto or incorporates solid waste into the soil surface, excluding manure spreading operations, at greater than agronomic rates, and soil conditioners, and immobilization rates.

(26) "Lateral expansion" means a horizontal expansion of the waste boundaries of an existing MSWLF unit.

(27) "Leachate" means a liquid that has passed through or emerged from solid waste and contains soluble, suspended, or miscible materials removed from such waste.

(28) "Limited purpose landfill" means a landfill that receives solid waste of limited type with known and consistent composition other than wood wastes, ~~municipal solid~~ household waste, inert waste, and construction/demolition waste.

(29) "Liquid waste" is as defined in 40 CFR 258.28(c) (1).

(30) "Monofill" means a landfill which contains a specific waste whose waste stream characteristics remain unchanged over time and may include special wastes, ~~problem wastes~~ or other consistent characteristic wastes but ~~de~~ does not include wastes regulated under any other applicable ~~regulations~~ regulation.

(31) "Municipal solid waste landfill unit ~~(MSWLF)~~" or "MSWLF" means a discrete area of land or an excavation that receives household waste, and that is not a land application unit, surface impoundment, injection well, or waste pile, as those terms are defined ~~under~~ in 40 CFR 257.2. A MSWLF unit also may receive other types of RCRA subtitle D wastes, such as commercial solid waste, nonhazardous sludge, conditionally exempt small quantity generator waste, and industrial solid waste. Such a landfill may be publicly or privately owned. A MSWLF unit may be a new MSWLF unit, an existing MSWLF unit, or a lateral expansion.

(32) "New MSWLF unit" means any municipal solid waste landfill unit that has not received waste prior to October 9, 1993, or prior to October 9, 1995, if the MSWLF unit meets the conditions specified in 40 CFR 258.1(f) (1).

(33) "No potential for migration" means the geologic formation beneath the site and above the uppermost aquifer has sufficient hydrogeological characteristics and holding capacity adequate to contain all hazardous constituents generated during the active life, closure, and post-closure care periods.

(34) "Nonmunicipal solid waste" or "NMSW" means a solid waste that is not mixed with household waste and not excluded by statute or rule.

(35) "Nonmunicipal solid waste landfill" or "NMSWLF" means a landfill that accepts only nonmunicipal solid waste.

~~(33)~~ (36) "Open burning" means the combustion of solid waste without:

1 (a) ~~control~~ Control of combustion air to maintain adequate temperature
2 for efficient combustion;

3 (b) ~~containment~~ Containment of the combustion reaction in an enclosed
4 device to provide sufficient resident time and mixing for complete com-
5 bustion; and

6 (c) ~~control~~ Control of the emission of the combustion products.

7 (37) "Operations plan" means the written plan developed by an owner or
8 operator of an MSWLF unit detailing how the facility is to be operated during
9 its active life, during closure, and throughout the post-closure period.

10 ~~(34)~~ (38) "Operator" means the person(s) responsible for the overall
11 operation of a facility or part of a facility.

12 ~~(35)~~ (39) "Owner" means the person(s) who owns a facility or part of a
13 facility.

14 ~~(36)~~ (40) "Permeability" means the capacity of a material to transmit a
15 liquid. For the purposes of this chapter permeability is expressed in terms
16 of hydraulic conductivity of water in centimeters-per-second units of mea-
17 surement.

18 ~~(37)~~ (41) "Person" means an individual, association, firm, partner-
19 ship, political subdivision, public or private corporation, state or fed-
20 eral agency, municipality, industry, or any other legal entity whatsoever.

21 ~~(38)~~ (42) "Pile" or "waste pile" means any noncontainerized solid, non-
22 flowing waste that is accumulated for treatment or storage.

23 ~~(39)~~ "Plan of operation" means the written plan developed by an owner or
24 operator of a MSWLF unit detailing how the facility is to be operated during
25 its active life, during closure, and throughout the post closure period.

26 ~~(40)~~ (43) "Point of compliance" means a vertical surface located at the
27 hydraulically downgradient intercept with the uppermost aquifer at which a
28 release from a waste management unit measured as change in constituent val-
29 ues will trigger assessment monitoring. Point of compliance shall be used to
30 define the facility design, location, and frequency of ground water monitor-
31 ing wells and corrective action.

32 ~~(41)~~ (44) "Post-closure" means the requirements placed upon the MSWLF
33 unit after closure to ensure their environmental safety for a thirty (30)
34 year period or until the site becomes stabilized in accordance with ~~section~~
35 39-7416, Idaho Code this chapter.

36 ~~(42)~~ (45) "Processing" means an operation conducted on solid waste to
37 prepare it for disposal.

38 ~~(43)~~ (46) "Qualified professional" means a licensed professional ge-
39 ologist or licensed professional engineer, as appropriate, holding current
40 professional registration in compliance with applicable provisions of the
41 Idaho Code.

42 ~~(44)~~ (47) "RCRA" means the resource conservation and recovery act, ~~(42~~
43 U.S.C. ~~sec.~~ 6901 et seq.), as amended.

44 ~~(45)~~ (48) "Run-off" means any rainwater, leachate, or other liquid that
45 drains over land from any part of a facility.

46 ~~(46)~~ (49) "Run-on" means any rainwater, leachate, or other liquid that
47 drains over land onto any part of a facility.

48 ~~(47)~~ (50) "Saturated zone" means that part of the earth's crust in which
49 all voids are filled with water.

1 ~~(48)~~ (51) "Septage" means a semisolid consisting of settled sewage
 2 solids combined with varying amounts of water and dissolved materials gener-
 3 ated from a septic tank system.

4 ~~(49)~~ (52) "Sludge" means any solid, semisolid, or liquid waste gen-
 5 erated from a municipal, commercial, or industrial waste water treatment
 6 plant, water supply treatment plant, or air pollution control facility,
 7 exclusive of the treated effluent from a waste water treatment plant.

8 ~~(50)~~ (53) "Solid waste" means any garbage or refuse, sludge from a
 9 waste water treatment plant, water supply treatment plant, or air pollution
 10 control facility and other discarded material including solid, liquid,
 11 semisolid, or contained gaseous material resulting from industrial, commer-
 12 cial, mining, and agricultural operations and from community activities,
 13 but does not include solid or dissolved materials in domestic sewage, or
 14 solid or dissolved materials in irrigation return flows or industrial dis-
 15 charges that are point sources subject to permit under 33 U.S.C. 1342, or
 16 source, special nuclear, or byproduct material as defined in the atomic
 17 energy act of 1954, as amended (68 Stat. 923). These regulations shall not
 18 apply to the following solid wastes. Solid waste does not include:

19 (a) Overburden, waste dumps, and low-grade stockpiles from mining op-
 20 erations;

21 (b) Liquid wastes whose discharge or potential discharge is regulated
 22 under federal, state, or local water pollution permits;

23 (c) Hazardous wastes, as designated in the hazardous waste management
 24 act, chapter 44, title 39, Idaho Code;

25 (d) Wood waste used for ornamental, animal bedding, mulch and plant
 26 bedding and road building purposes;

27 (e) Agricultural wastes, limited to manures and crop residues, re-
 28 turned to the soils at agronomic rates;

29 (f) Clean soils and clean dredge spoils as otherwise regulated under
 30 section 404 of the federal clean water act (PL 95-217);

31 (g) Septage taken to a sewage treatment plant permitted by either the
 32 U.S. environmental protection agency or the department; and

33 (h) Wood debris resulting from the harvesting of timber and the dis-
 34 posal of which is permitted ~~under~~ pursuant to chapter 1, title 38, Idaho
 35 Code-;

36 (i) Solid or dissolved materials in domestic sewage;

37 (j) Solid or dissolved materials in irrigation return flows;

38 (k) Industrial discharges that are point sources subject to permit un-
 39 der 33 U.S.C. 1342; and

40 (l) Source, special nuclear, or byproduct material as defined in the
 41 atomic energy act of 1954, as amended.

42 ~~(51)~~ (54) "Special waste" means those wastes which require special
 43 treatment or handling after it ~~arrives~~ arrival at the disposal site. ~~The~~
 44 ~~term includes, including but is not limited to, asbestos containing ma-~~
 45 ~~terial, petroleum contaminated soils, low-level PCB containing material,~~
 46 ~~low-level dioxin containing material, and uncut unprocessed tires.~~

47 ~~(52)~~ (55) "Statistically significant" means significant as determined
 48 by ANOVA analysis of variance as applied within 40 CFR 258.53(h)(2) or as
 49 provided by 40 CFR 258.53(g)(5) a statistical test method outlined in 40 CFR

1 258.53(g) or by another method that meets the requirements provided by 40 CFR
 2 258.53(h).

3 ~~(53)~~ (56) "Uppermost aquifer" means the geological formation nearest
 4 the natural ground surface that is an aquifer as well as lower aquifers that
 5 are hydraulically interconnected with this aquifer within the facility's
 6 property boundary.

7 ~~(54)~~ (57) "Waste management unit boundary" means a vertical surface lo-
 8 cated at the hydraulically downgradient limit of the unit. This vertical
 9 surface extends down into the uppermost aquifer.

10 ~~(55)~~ (58) "Water quality standard" means a standard set for maximum al-
 11 lowable contamination in surface waters and ground water as set forth in the
 12 water quality standards for waters for the state of Idaho.

13 ~~(56)~~ (59) "Wetlands" is as defined in 40 CFR 232.2(r) by federal law or
 14 regulations.

15 ~~(57)~~ (60) "Wood waste" means solid waste consisting of wood pieces or
 16 particles generated as a byproduct or waste from the manufacturing of wood
 17 products, handling and storage of raw materials and trees and stumps. This
 18 includes, but is not limited to, sawdust, chips, shavings, bark, pulp, hog
 19 fuel and log yard waste, but does not include wood pieces or particles con-
 20 taining chemical preservatives such as creosote, pentachlorophenol, or cop-
 21 per-chrome-arsenate.

22 Undefined terms shall be given their usual and ordinary meaning within
 23 the context of the provisions of this chapter.

24 SECTION 6. That Section 39-7404, Idaho Code, be, and the same is hereby
 25 amended to read as follows:

26 39-7404. CONSISTENCY WITH FEDERAL LAW -- STATUS OF APPENDICES. (1) The
 27 legislature intends that the state of Idaho enact and carry out a solid waste
 28 program that will enable the state to achieve approved state status with re-
 29 spect to solid waste disposal facility regulation from the federal govern-
 30 ment.

31 (2) The legislature finds that subtitle D of RCRA, and in particular
 32 the code of federal regulations, title 40, part 257 and 258, establish com-
 33 plex, detailed, and costly provisions for the disposal of solid waste. By
 34 the provisions of this chapter, the legislature desires to avoid duplicative
 35 or conflicting state and federal regulatory systems and allow local MSWLF
 36 unit owners the maximum flexibility possible under ~~40 CFR 257 and 258~~ federal
 37 regulations, to meet the substantive goals of protection of human health and
 38 the environment with consideration for actual site and climatic conditions.
 39 At any time that ~~40 CFR 257 or 40 CFR 258~~ is applicable federal law or regu-
 40 lations are amended, any additional flexibility or extension otherwise pro-
 41 hibited by this chapter shall be allowed as applicable.

42 (3) The board may not promulgate any rule pursuant to this ~~act~~ chapter
 43 that would impose conditions or requirements more stringent or broader in
 44 scope than the referenced RCRA regulations of the United States environmen-
 45 tal protection agency or the provisions of this chapter. Until regulations
 46 are adopted, agency conclusions in appendix B through appendix H, inclusive,
 47 per the "Federal Register" of October 9, 1991, or the solid waste disposal
 48 technical manual published by the United States environmental protection

1 agency in November 1993 and revised in April 1998, shall be used for techni-
 2 cal guidance for relevant provisions of this chapter.

3 SECTION 7. That Section 39-7406, Idaho Code, be, and the same is hereby
 4 amended to read as follows:

5 39-7406. RESPECTIVE ROLES OF COUNTY, ~~AND DIRECTOR AND HEALTH DISTRICT~~
 6 -- LIBERAL CONSTRUCTION. (1) The county, ~~and director and health district~~
 7 each perform key roles in statewide solid waste management. Principal ju-
 8 risdiction for the various functions of solid waste regulation and manage-
 9 ment as it pertains to site selection, development, operation, and closure
 10 shall be carried out as outlined herein:

11 (a) Each county may select a solid waste landfill site or sites, eval-
 12 uate said site(s) for compliance with site certification criteria,
 13 develop design plans for construction and operation of MSWLF unit(s),
 14 including ground water monitoring programs, provide for public re-
 15 view of its site certification, facility design and operations plans
 16 through ~~the conduct of a twenty-eight (28) day~~ any public comment period
 17 conducted pursuant to this chapter, publish legal notices, serve as
 18 the repository of funds established for financial assurance, cooperate
 19 with the director ~~and district~~ to construct and operate a solid waste
 20 disposal system which protects human health and the environment, and
 21 perform such other solid waste related duties as may be specified in
 22 chapter 44, title 31, Idaho Code;

23 (b) The director shall ~~interact~~:

24 (i) Interact and cooperate with federal agencies to secure ap-
 25 proved state status concerning solid waste programs, ~~administer~~;

26 (ii) Administer the site selection process by requiring an owner
 27 to certify, through such professional documentation as may be re-
 28 quired in this chapter, that the site is not encumbered by criti-
 29 cal site limitations as set forth in section 39-7407, Idaho Code,
 30 ascertaining that such certification has been made by a qualified
 31 professional, ~~review~~;

32 (iii) Review and approve MSWLF unit design plans, the ground water
 33 monitoring program, alternative daily cover and final cover, al-
 34 ternative closure and post-closure care requirements ~~recommended~~
 35 ~~to the director for approval by the district~~, financial assurance,
 36 and any other approvals required ~~in~~ by this chapter or 40 CFR 258,
 37 ~~prepare and/or~~;

38 (iv) Prepare and adopt such regulations as may be necessary to im-
 39 plement the provisions of this chapter, ~~and cooperate~~;

40 (v) Cooperate in actual site monitoring and corrective action
 41 programs; ~~and~~

42 ~~(e) (vi) The health district shall ascertain that~~ Ensure opera-
 43 tions standards are met, ~~prepare and/or~~;

44 (vii) Prepare and adopt technical guidance, ~~review and recommend~~
 45 ~~approval of alternative operating, closure and post-closure re-~~
 46 ~~quirements to the director, and review; and~~

47 (viii) Review and enforce all aspects of operation, closure, and
 48 post-closure ~~except as specified above.~~

~~(d)~~ (c) All approvals required by 40 CFR 258 shall be obtained by the owner and/or applicant; and all provisions of 40 CFR 258 which provide for flexibility may be obtained by the owner and/or applicant; and the director shall have the authority to grant all such approvals in accordance with the provisions of this chapter, the duty to make a determination that an application meets standards or provides an acceptable alternative, and the duty to approve or disapprove the application in a timely manner prescribed in this chapter.

(2) This chapter shall be liberally construed to allow these public entities having jurisdiction to perform their respective roles to protect human health and the environment through expeditious and technically proper solid waste management practices, while recognizing the authority of local governments to act in their governmental capacity to perform the duties prescribed in chapter 44, title 31, Idaho Code.

SECTION 8. That Section 39-7408, Idaho Code, be, and the same is hereby amended to read as follows:

39-7408. SITE CERTIFICATION PROCEDURE. (1) It shall be the responsibility of each applicant to obtain site certification from the director. The site certification process is hereby established to ascertain compliance with the requirements of section 39-7407, Idaho Code.

(2) The site certification procedure shall be administered in the following manner: accordance with the provisions of this chapter and rules promulgated pursuant thereto.

~~(a) Prior to submittal of the application, the applicant may conduct a site tour for the director, health district and all other public agencies with jurisdiction to familiarize the agencies with characteristics of the site and site surroundings.~~

~~(b) The applicant may then submit an application to the director. The application shall address each of the criteria set forth in section 39-7407, Idaho Code, explaining the technical findings regarding each.~~

~~(c) Wherever technical evaluation of relevant information is required, a qualified professional, as appropriate, shall certify compliance with the requisite criteria.~~

~~(d) When the application is submitted to the director, the applicant shall publish legal notice of submittal of the application in the newspaper published in the county as determined by the criteria in section 31-819, Idaho Code, and shall make the application available for public inspection and copying. The date of publication of such notice shall begin a twenty-eight (28) day comment period during which written comments concerning the application may be submitted to the director.~~

~~(e) The director shall act upon the application within twenty-one (21) days of the end of the comment period set forth above and shall enter a decision either certifying the site or rejecting the application. The director shall review the site certification application, not contravening the opinion of the applicant's qualified professional(s) without reliable empirical evidence that the affirmations in the application are erroneous. Upon finding that the criteria of section 39-7407, Idaho Code, have been affirmed by qualified professionals, the director shall certify the site. Any rejection of a site certification ap-~~

plication shall be accompanied by findings in writing expressly stating the criteria insufficiently documented and/or violated and the evidence relied upon in making such determination. Failure of the director to act within twenty-one (21) days shall constitute site certification. An applicant shall be provided an opportunity to appeal any denial of certification.

~~(f)~~ (3) Site certification is transferable with ownership of the site.

~~(g)~~ Within ten (10) working days of receipt of certification from the director, the applicant shall publish notice in the newspaper provided for in subsection (d) of this section, informing the public that certification of the site has been approved.

SECTION 9. That Section [39-7408A](#), Idaho Code, be, and the same is hereby repealed.

SECTION 10. That Section [39-7408B](#), Idaho Code, be, and the same is hereby repealed.

SECTION 11. That Section [39-7408C](#), Idaho Code, be, and the same is hereby repealed.

SECTION 12. That Section [39-7408D](#), Idaho Code, be, and the same is hereby repealed.

SECTION 13. That Chapter 74, Title 39, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 39-7409, Idaho Code, and to read as follows:

39-7409. CO-LOCATED WASTE FACILITIES. (1) An applicant may submit a combined application for a CWF pursuant to the provisions of this chapter.

(2) A single notice of approval for a CWF shall be issued by the director pursuant to the provisions of this chapter.

(3) The review and approval process shall be administered in accordance with the provisions of this chapter and rules promulgated pursuant thereto that are applicable to the applicant's CWF design and operations.

(4) Co-located waste facilities shall be subject to the annual inspection fee assessed on municipal solid waste landfills and shall be subject to tonnage fees in an amount equal to the waste that is disposed in the municipal solid waste landfill portion of the co-located facility.

SECTION 14. That Section 39-7409, Idaho Code, be, and the same is hereby amended to read as follows:

~~39-7409~~ 39-7410. STANDARDS FOR DESIGN. (1) ~~Applicability~~. These standards apply to new MSWLF units and lateral expansions of existing facilities as provided in 40 CFR 258.40.

(2) ~~Liner designs~~. An application shall indicate the liner design that will be used in each phase of construction. All owners or operators of MSWLF units shall use one (1) or more of the following designs, in combination or alone:

1 ~~(a) Composite liner design.~~ A composite liner design, as provided un-
 2 der 40 CFR 258.40(b) ~~and shall include that includes~~ a leachate collec-
 3 tion system as provided under 40 CFR 258.40(a)(2); ~~or~~

4 ~~(b) Alternate liner design.~~ A site-specific alternate liner de-
 5 sign based upon environmental performance, as allowed under 40 CFR
 6 258.40(a)(1), which will ensure that the concentration values listed
 7 in table 1, 40 CFR 258.40, or as amended, will not be exceeded in the
 8 uppermost aquifer at the relevant point of compliance. This design
 9 shall demonstrate consideration of site specific factors as provided
 10 in 40 CFR 258.40(c) and shall include a leachate collection system as
 11 provided under 40 CFR 258.40(a)(2); ~~or~~

12 ~~(c) Arid design.~~ A site-specific arid design based upon environmen-
 13 tal performance, as allowed under 40 CFR 258.40(a)(1) which will ensure
 14 that the concentration values listed in table 1, 40 CFR 258.40, or as
 15 amended, will not be exceeded in the uppermost aquifer at the relevant
 16 point of compliance. This design shall use both field collected data
 17 and predictions that maximize contaminant migration for demonstrating
 18 no potential for migration. This design ~~will apply to locations having~~
 19 ~~less than twenty-five (25) inches of precipitation annually, net evapo-~~
 20 ~~rative losses greater than thirty (30) inches annually, and holding ca-~~
 21 ~~capacity in native soils greater than annual absorbance; and only applies~~
 22 if:

23 (i) ~~solid~~ Solid waste is deposited no less than fifty (50) feet
 24 above the seasonal high level of ground water in the uppermost
 25 aquifer;

26 (ii) ~~the~~ The geologic formation beneath the site and above the up-
 27 permost aquifer must have capillary capacities greater than the
 28 projected maximum volume of leachate generated during the active
 29 life of the MSWLF unit; and

30 (iii) ~~"no potential for migration" is demonstrated when the geo-~~
 31 ~~logic formation beneath the site and above the uppermost aquifer~~
 32 ~~has sufficient hydrogeological characteristics and holding ca-~~
 33 ~~capacity adequate to contain all hazardous constituents generated~~
 34 ~~during the active life, closure and post-closure care periods. No~~
 35 ~~potential for migration is demonstrated; and~~

36 (iv) The location has less than twenty-five (25) inches of precip-
 37 itation annually, net evaporative losses greater than thirty (30)
 38 inches annually, and a holding capacity in native soils greater
 39 than annual absorbance.

40 (3) ~~Point of compliance.~~ For each MSWLF unit, the relevant point of
 41 compliance shall be set by a qualified professional by criteria contained
 42 in 40 CFR 258.40(d) ~~(1) through (d) (8), inclusive,~~ subject to approval by the
 43 director.

44 (4) Leachate discharge shall comply with permitted discharge require-
 45 ments under the federal clean water act (PL 95-217) and federal storm water
 46 discharge regulations (40 CFR part 122).

47 SECTION 15. That Section 39-7410, Idaho Code, be, and the same is hereby
 48 amended to read as follows:

1 ~~39-7410~~ 39-7411. GROUND WATER MONITORING DESIGN. (1) ~~Applicability.~~
 2 ~~These requirements apply~~ This section applies to MSWLF units except:

3 (a) When the MSWLF unit meets the conditions for exemption provided for
 4 in 40 CFR 258.1(f); ~~provided however,~~ that the director may, at his dis-
 5 cretion, require monitoring of a MSWLF unit which meets the conditions
 6 for exemption in 40 CFR 258.1(f), if necessary to protect ground water
 7 resources. If the director does require ground water monitoring of such
 8 MSWLF unit, a method other than the ground water monitoring wells re-
 9 quired in this section and in 40 CFR 258.51 through 258.55 may be used to
 10 detect a release of contamination from the unit; or

11 (b) When suspended upon demonstration, in accordance with 40 CFR
 12 258.50, that there is no potential for migration of hazardous con-
 13 stituents from the MSWLF unit to the uppermost aquifer during the active
 14 life of the unit and the post-closure care periods when certified by a
 15 qualified professional and approved by the director.

16 (2) ~~Ground water monitoring program.~~ All ground water monitoring pro-
 17 grams shall be conducted in a manner consistent with the guidance of relevant
 18 portions of appendix F per the "Federal Register" of October 9, 1991, or the
 19 solid waste disposal technical manual published by the United States envi-
 20 ronmental protection agency in November 1993 and revised in April 1998. The
 21 schedule for compliance as provided by 40 CFR 258.50 shall apply unless an
 22 alternative schedule is approved by the director.

23 (a) A ground water monitoring system must be installed that consists
 24 of a sufficient number of wells, installed at appropriate locations and
 25 depths, to conform with the requirements of 40 CFR 258.51(a) and (d).

26 (b) A multiunit ground water monitoring system may be constructed in-
 27 stead of separate ground water monitoring systems for each MSWLF unit as
 28 provided in 40 CFR 258.51(b).

29 (c) Monitoring wells must be cased in a manner that maintains the
 30 integrity of the monitoring well bore hole as provided in 40 CFR
 31 258.51(c). Wells must be constructed in such a manner as to prevent
 32 contamination of the samples, the sampled strata, and between aquifers
 33 and water bearing strata, and in accordance with Idaho department of
 34 water resources, well construction standards and the monitoring well
 35 standards of the national ground water association.

36 (3) ~~Point of compliance.~~ For each MSWLF unit, the relevant point of
 37 compliance shall be set as a function of site and monitoring program design
 38 subject to the approval of the director. The relevant point of compliance
 39 for purposes of MSWLF unit design, well location, and corrective action
 40 shall be:

41 (a) Located within the flow pathway(s) predicted from the results of
 42 the hydrogeologic investigation;

43 (b) No more than one hundred fifty (150) meters downgradient from the
 44 waste management unit boundary;

45 (c) On contiguous property owned, or otherwise subject to possessory
 46 rights by the MSWLF owner;

47 (d) ~~Shall be identified~~ Identified by the qualified professional on all
 48 reports and documents pertaining to analysis of ground water protection
 49 measures; and

(e) Determined in consideration of factors provided in 40 CFR 258.40(d).

~~(4) Ground water characterization, sampling and analysis requirements.~~

~~(a) (4)~~ The ground water monitoring system must include sampling and analysis procedures consistent with 40 CFR 258.53.

~~(b) (a)~~ Monitoring wells shall be tested for the constituents listed in 40 CFR 258, appendix I, plus temperature, unless otherwise authorized by the director as provided in 40 CFR 258.54.

~~(c) (b)~~ Background values ~~will~~ shall be based on an independent sample from each well sampled at three (3) month intervals in a one (1) year period.

~~(5) Detection monitoring program.~~

~~(a) (5)~~ Detection monitoring is required throughout the active life and post-closure care period at MSWLF units as provided in 40 CFR 258.54 at all ground water monitoring wells as defined in 40 CFR 258.51(a) (1) and (a) (2) for constituents listed in 40 CFR 258, appendix I.

~~(b) (a)~~ Each well shall be monitored on a semiannual basis after background characterization. Alternative constituents and sampling frequency may be approved by the director based upon considerations as defined in 40 CFR 258.54 (a) (2) and (b). Requests for alternative constituents or frequency shall be based on a report certified by a qualified professional.

~~(c) (b)~~ Each ground water sample event must include a determination of the ground water surface elevation, flow direction, and rate.

SECTION 16. That Section 39-7411, Idaho Code, be, and the same is hereby amended to read as follows:

~~39-7411~~ 39-7412. DESIGN REVIEW PROCEDURE. (1) Design of a MSWLF unit shall not be reviewed until site certification has been obtained. After obtaining site certification, an applicant shall produce design plans and specifications which comply with the design standards set forth in ~~sections 39-7409 and 39-7410, Idaho Code~~ this chapter. The responsibility for complying with said standards shall rest solely with the applicant ~~of the site~~.

~~(2) An applicant may notify the director of its intent to initiate a MSWLF site design and meet with the director to discuss standards, schedule, design process to be used and particular concerns of the director.~~

~~(3) (2)~~ The applicant shall conduct aerial and cadastral surveys, relevant studies, and prepare a hydrogeologic report which will satisfy standards and other provisions in accordance with this chapter and applicable state regulations. Specific climatic data and verification of location restrictions shall be included a preliminary investigation. In so doing, the applicant shall conduct aerial and cadastral surveys and perform other relevant studies to demonstrate compliance with this chapter and rules promulgated pursuant thereto.

~~(4) (3)~~ The After completing the preliminary investigation, the applicant shall submit findings and a tentative design plan, including preliminary schematic design of environmental monitoring systems to the director as a result of the preliminary design investigation. The submittal initiates a ~~twenty-eight (28) day period for department review and comment. Concur-~~

~~rent with the submittal to the director, the applicant shall publish notice in a newspaper of general circulation, as determined by the criteria in section 31-819, Idaho Code, in the county wherein the MSWLF would be located notifying the public that a preliminary design plan has been submitted to the director and is available for public review. The date of publication initiates a twenty-eight (28) day period for department review and public comment. Written public comments concerning the proposed design plan shall be compiled by the director. The compiled public comments received by the director and those generated by the director shall be transmitted to the owner, and the applicant if other than the owner, no more than thirty-five (35) days after the date of publication of the notice or seven (7) days after the end of the public comment period, whichever is later. preliminary design plan to the director for review and approval pursuant to this chapter. The preliminary design plan shall include:~~

- ~~(a) A hydrogeologic report;~~
- ~~(b) Climatic data;~~
- ~~(c) Location restrictions;~~
- ~~(d) A preliminary ground water monitoring plan;~~
- ~~(e) A preliminary schematic design of environmental monitoring systems;~~
- ~~(f) A preliminary schematic design of the facility; and~~
- ~~(g) Such other information as is relevant or necessary to demonstrate compliance with the provisions of this chapter and rules promulgated pursuant thereto and to provide for meaningful comment by the public and the department.~~

~~(5) (4) When a response is received from the director, Upon approval of the preliminary design by the director, the applicant may submit the facility design, ground water monitoring program, and specifications, in a final design report which addresses standards established by this chapter, applicable federal regulations and other relevant provisions of state law shall submit a final design report to the director for review and approval pursuant to this chapter.~~

- ~~(a) Said submittal The final design report shall include:~~
 - ~~(i) a A site-specific analysis of hydrogeologic conditions,;~~
 - ~~(ii) location Location restrictions;~~
 - ~~(iii) and other factors Factors relevant to long-term site integrity, and shall address comments from the public and the director related to objective standards in the final design report.;~~
 - ~~(iv) A ground water monitoring program;~~
 - ~~(v) Facility design and specifications; and~~
 - ~~(vi) Such other information as is relevant or necessary to demonstrate compliance with the provisions of this chapter and rules promulgated pursuant thereto.~~

~~(b) Said The submittal shall be prepared and stamped by a qualified professional in a manner consistent with sound professional practices. The submittal of this final design report initiates a fifty-six (56) day period for the director's review.~~

~~(6) Concurrent with submittal to the director, the applicant shall release the final design report, including all supporting reports, plans and documentation, to the extent practicable, for public comment by placing it~~

for inspection at every public library within the county where the proposed MSWLF would be located. Copies of the submittal shall be made available for possession, at the cost of duplication, at a public location in the county seat of the county where the proposed MSWLF unit would be located. The applicant shall publish notice in a newspaper of general circulation, as determined by the criteria in section 31-819, Idaho Code, in the county wherein the MSWLF would be located notifying the public that a final design report has been submitted to the director and is available for public review. Public comments shall be submitted, in writing, to the director within twenty-eight (28) days of the date of publication.

(7) No more than fifty-six (56) days after publication of notice of submittal, or twenty-eight (28) days after the close of an advertised public comment period, whichever is later, the director shall enter a decision either approving or disapproving the final design. The decision shall be in writing and shall make one (1) of the following findings:

(a) Based upon the information submitted, design complies with applicable standards.

(b) Based upon the information submitted, the design does not comply with applicable standards, setting forth with specificity the material standards not met or insufficiently documented.

(c) Failure to comport with professional standards.

Failure of the director to respond to an applicant's request for approval in the manner provided herein shall constitute approval of the request. Construction shall not be initiated on a MSWLF unit until approval has been granted, except that construction prior to approval may be initiated prior to July 1, 1993, for a MSWLF unit which meets the design standard of section 39-7409(2) (a), Idaho Code. The applicant shall publish notice of approval in a newspaper of general circulation when affirmative or defacto approval is given.

(8) Upon entering a decision of disapproval, an automatic twenty-one (21) day stay of proceedings shall occur unless waived by the applicant. During the twenty-one (21) day stay, the director and the applicant may meet and confer to attempt to reconcile differences. At any point during that twenty-one (21) day period the director and applicant can reach an accord and approval can be granted, with construction authorized at that point. The applicant can tender a written waiver of this twenty-one (21) day reconciliation period which would initiate the requirement provided for in subsection (9) of this section. At any time in the review process or post-decision reconciliation process the applicant and director may mutually agree to extend the timeframes contained herein and may resort to mediation, arbitration, or binding arbitration to resolve differences as they mutually see fit.

(9) If differences are not reconciled in the period set forth in subsection (8) of this section, the director shall notify the owner that the design remains disapproved. Said notice of disapproval shall incorporate the rationale for disapproval contained in the original decision of disapproval, deleting any issues resolved in the post-decision reconciliation period.

(10) Following final action by the director the applicant may file a petition with the district court, with concurrent notice to the director, in the county where the proposed MSWLF would be located for expedited appellate review of the director's decision. The petition shall set forth the specific

1 basis for the appeal and shall identify the legal and factual basis for con-
 2 testing the disapproval by the director. The director shall submit a copy
 3 of the entire record upon which its disapproval has been based no more than
 4 fourteen (14) days after the date the applicant's petition for review has
 5 been filed. Only information which has been available during the design re-
 6 view process may be used in the judicial review process.

7 (11) All issues claimed as a basis of appeal by the applicant shall be
 8 addressed in a memorandum filed with the petition appealing disapproval by
 9 the director. The director shall submit a reply memorandum no later than
 10 fourteen (14) days after the applicant's petition for review has been filed.

11 (12) Upon the record, the applicable law, the memoranda of the respec-
 12 tive parties, and such independent technical assistance as the court may
 13 find it necessary and appropriate to retain, the court shall evaluate the
 14 applicant's petition and the decision by the director and shall render a
 15 decision no more than twenty-one (21) days after the completed record, and
 16 accompanying memorandum, if one is filed, are submitted to the court by the
 17 director. The court shall sustain the director's disapproval action if
 18 it affirmatively finds that the record contains substantial evidence that
 19 the design does not comply with standards as specified pursuant to section
 20 39-7412(7) (b) or (c), Idaho Code. If the court finds the disapproval is
 21 not supported by substantial evidence in the record, it shall reverse the
 22 director's action and remand the matter to the director with appropriate
 23 instructions.

24 (13) The procedure set forth in subsections (10) through (12) of this
 25 section are effective until January 1, 1994. On and after January 1, 1994,
 26 the applicant is entitled to judicial review pursuant to chapter 67, title
 27 52, Idaho Code. Upon waiver or expiration of the twenty-one (21) day recon-
 28 ciliation period, the director and the applicant shall stipulate to accel-
 29 erated judicial review pursuant to court approval where the ordinary review
 30 period provided in chapter 67, title 52, Idaho Code, may reasonably result in
 31 substantial increased costs to the applicant, potential violations of fed-
 32 eral or state environmental laws or threats to the public health and environ-
 33 ment.

34 (5) Expansion of the site, facility, or operations, including adding a
 35 CWF, or addition of activities not included in the approved preliminary de-
 36 sign shall require the applicant to submit an application to update the pre-
 37 liminary design with the department for review and approval. The review and
 38 approval process for such applications shall depend on whether the proposed
 39 action is considered to be a major or minor modification.

40 SECTION 17. That Section 39-7412, Idaho Code, be, and the same is hereby
 41 amended to read as follows:

42 ~~39-7412~~ 39-7413. STANDARDS FOR OPERATION. Owners or operators of all
 43 MSWLF units shall:

44 (1) Obtain site certification, design approval, and operating plan ap-
 45 proval prior to accepting waste;

46 ~~(1)~~ (2) Implement a program for detecting and preventing disposal of
 47 regulated hazardous wastes as provided in 40 CFR 258.20;

1 ~~(2)~~ (3) Provide for daily cover as provided in 40 CFR 258.21. Alternative materials or cover frequency other than daily cover may be used only as specified by the MSWLF plan of operation;

2 ~~(3)~~ (4) Provide disease vector control as provided in 40 CFR 258.22;

3 ~~(4)~~ (5) Implement a program of routine methane monitoring and control as provided in 40 CFR 258.23;

4 ~~(5)~~ (6) Ensure that MSWLF units do not violate any ambient air quality standard or emission standard from any emission of landfill gases, combustion or any other emission associated with a MSWLF unit as provided in 40 CFR 258.24;

5 ~~(6)~~ (7) Provide and control access as provided in 40 CFR 258.25;

6 ~~(7)~~ (8) Design, construct, and maintain a ~~run-on/run-off~~ run-on and run-off control systems as provided in 40 CFR 258.26 to:

7 (a) Prevent all the run-on of surface waters and other liquids resulting from a maximum flow of a twenty-five (25) year storm, or snowmelt into the active portion of the MSWLF unit;

8 (b) Control the collection of the run-off of surface waters and other liquids resulting from a twenty-four (24) hour, twenty-five (25) year storm, or snowmelt, whichever is greater, from the active portion and the closed portions of a MSWLF unit; and

9 (c) Prevent the discharge of pollutants into waters of the United States and the state of Idaho as defined in 40 CFR 258.27;

10 ~~(8)~~ (9) Prohibit the disposal of noncontainerized liquids or sludges containing free liquids in MSWLF units except as provided in 40 CFR 258.28;

11 ~~(9)~~ (10) Establish an operating and recordkeeping procedure as provided in 40 CFR 258.29; and

12 ~~(10)~~ (11) Comply with operating procedures established by the board for implementation by the ~~districts~~ department, which are intended to ~~assure~~ ensure operations ~~which~~ protect the public health and maintain the integrity of the landfill design; and

13 ~~(11)~~ (12) For MSWLF units that dispose of ~~greater~~ more than twenty (20) tons per day of municipal solid waste based on an annual average ~~shall~~:

14 (a) Monitor daily ~~climatic conditions~~. ~~Monitoring shall include precipitation including snow, evaporation, evaporative water temperature, air temperature, wind speed and direction precipitation, air temperature, and wind speed and direction through on-site facilities or a designated local weather station; and~~

15 (b) Weigh all incoming waste or provide an equivalent method of measuring waste tonnage capable of estimating total annual solid waste tonnage.

16 SECTION 18. That Section 39-7413, Idaho Code, be, and the same is hereby amended to read as follows:

17 ~~39-7413~~ 39-7414. OPERATIONS PLAN REVIEW. (1) Prior to operation of a MSWLF unit, an operations plan shall be submitted to the ~~health district with jurisdiction~~ department. It shall be the responsibility of each applicant of a MSWLF unit to certify to the ~~health district~~ department that the ~~provisions of section 39-7412, Idaho Code, have been complied with through development of an operating plan~~ operations plan complies with this chapter and rules promulgated pursuant thereto. No solid waste disposal facility

1 shall accept waste without a current operating certificate from the health
2 district with jurisdiction department.

3 (2) ~~The health district shall review operational plans in the same~~
4 ~~manner as the director reviews requests for site certification pursuant to~~
5 ~~section 39-7408, Idaho Code. An applicant shall provide information in the~~
6 ~~operations plan in sufficient detail to show compliance with the provisions~~
7 ~~of section 39-7412, Idaho Code, and required procedures adopted pursuant~~
8 ~~thereto. The same standards of review shall apply to an operations plan as~~
9 ~~apply to the site certification process. The health district shall accept~~
10 ~~certification by a qualified professional that standards of operation have~~
11 ~~been met upon presentation of the professional's certification of compli-~~
12 ~~ance and presentation of a written explanation of operational practices~~
13 ~~which will be undertaken to meet standards established in section 39-7412,~~
14 ~~Idaho Code this chapter and rules promulgated pursuant thereto.~~

15 (3) If an operations plan provides for alternative operating criteria
16 requiring approval by the director as provided in 40 CFR 258, the health dis-
17 trict shall make a decision recommending approval or disapproval. Such plan
18 shall be submitted by the health district to the director for his review. The
19 submittal shall be accompanied by findings of fact and the recommendation
20 from the health district. Proposed alternative operating criteria may be
21 included in the operations plan for review and approval by the director pur-
22 suant to this chapter. Alternative operating criteria may also be approved
23 by submitting an application to amend the operations plan with the depart-
24 ment. The review and approval process for such applications shall depend on
25 whether the proposed operating criteria is considered to be a major or minor
26 modification.

27 (4) The director shall review the recommendation submitted by the
28 health districts and shall make a decision to approve or disapprove. The
29 director shall review recommendations for approval using the same stan-
30 dards of review provided in section 39-7408(2)(e), Idaho Code. Expansion
31 of the site, facility, or operations, including adding a CWF, or addition
32 of activities not included in the approved operations plan shall require
33 the applicant to submit an application to amend the operations plan with the
34 department. The review and approval process for such applications shall
35 depend on whether the proposed operating criteria is considered to be a major
36 or minor modification.

37 (5) Operations plans shall be recertified every five (5) years, at a
38 minimum, pursuant to this chapter.

39 (6) The review and approval process for a new operations plan, an amend-
40 ment thereto, or recertification thereof shall be conducted pursuant to this
41 chapter.

42 SECTION 19. That Section 39-7414, Idaho Code, be, and the same is hereby
43 amended to read as follows:

44 ~~39-7414~~ 39-7415. ASSESSMENT MONITORING AND CORRECTIVE ACTION. (1)
45 ~~Applicability.~~ These standards apply whenever a statistically significant
46 increase over background has been detected for one (1) or more constituents
47 listed in 40 CFR 258, appendix I or an alternative list approved in accor-
48 dance with 40 CFR 258.54(a) (2).

(2) Assessment monitoring programs shall be performed in accordance with 40 CFR 258.55.

(3) Assessment of corrective measures shall be performed in accordance with 40 CFR 258.56. Pursuant to 40 CFR 258.56, the owner or operator shall discuss the results of the corrective measures assessment, prior to the selection of a remedy, in a public meeting with interested and affected persons.

(4) Selection of a remedy shall be performed in accordance with 40 CFR 258.57.

(5) Implementation of a corrective action program shall be performed in accordance with 40 CFR 258.58.

SECTION 20. That Section 39-7415, Idaho Code, be, and the same is hereby amended to read as follows:

~~39-7415~~ 39-7416. STANDARDS FOR CLOSURE. (1) ~~Applicability.~~ These standards apply to all MSWLF units that receive wastes on or after October 9, 1993, except as provided by 40 CFR 258. MSWLF units that accept waste after October 9, 1991, but cease to accept waste prior to October 9, 1993, shall, at a minimum, comply with subsections (2) (a) and (3) of this section in addition to the "sanitary landfill closure guidance" criteria as adopted by the health district technical guidance committee on June 8, 1990.

(2) ~~Cover designs.~~ Owners or operators of MSWLF units shall install one (1) of the following final cover systems:

(a) A cover as provided ~~under in~~ 40 CFR 258.60 (a) or (b); or

(b) ~~The cover material must be fine-grained~~ A cover that has a fine-grained cover material with intrinsic permeability no greater than 1×10^{-3} cm/sec and a minimum thickness of twenty-four (24) inches; ~~and:~~

(i) ~~Have~~ There is a capillary holding capacity greater than the projected maximum accumulated volume of water as determined by utilization of accepted water balance methodology based on local or regional twenty-five (25) year climatic records;

(ii) Annual precipitation is less than twenty-five (25) inches with net evaporative losses greater than thirty (30) inches annually;

(iii) The top six (6) inches of the cover shall be capable of sustaining shallow rooted native plant growth; and

(iv) ~~This design shall demonstrate~~ The design demonstrates consideration of site specific factors as provided in 40 CFR 258.60 (b) ~~or.~~

~~(c) As provided in 40 CFR 258.60 (b).~~

(3) The final grade of slopes shall be greater than two percent (2%) unless otherwise supported by the post-closure plan and uses approved by the ~~health district department,~~ and the grade of side slopes not more than thirty-three percent (33%).

(4) Closure plan preparation, placement in operating record, notice of intent to close, time requirements for commencement and completion of closure activities, certification, ~~deed notation~~ recordation of an environmental covenant, and removal of ~~deed notation~~ an environmental covenant shall be conducted as provided in 40 CFR 258.60 (c) through (j), inclusive. The

1 ~~deed notation and removal of deed notation~~ recordation and removal of an en-
 2 ~~vironmental covenant~~ shall comply with the uniform environmental covenants
 3 act, chapter 30, title 55, Idaho Code.

4 (5) After completion and certification of an MSWLF closure, the owner
 5 or operator shall record an environmental covenant, pursuant to the uniform
 6 environmental covenants act, chapter 30, title 55, Idaho Code, on the prop-
 7 erty where the MSWLF is located, and its future use may be restricted in ac-
 8 cordance with a post-closure care plan. A copy of the environmental covenant
 9 shall be sent to the department after recording with the county clerk.

10 (6) The review and approval process for a closure plan shall be con-
 11 ducted pursuant to this chapter.

12 (7) The owner or operator of an MSWLF that is closing shall cause no-
 13 tice of closure to be published in a newspaper of general circulation in the
 14 county and in the immediate vicinity of the facility and shall post notice of
 15 closure signs at the facility's entrance. The notice shall be published and
 16 posted:

17 (a) Between thirty (30) and ninety (90) days before the date of last re-
 18 ceipt of waste for a facility that has reached disposal capacity; or

19 (b) Between thirty (30) and ninety (90) days before the closure, if the
 20 facility has remaining capacity and there is a reasonable likelihood
 21 that the facility will receive additional waste.

22 SECTION 21. That Section 39-7416, Idaho Code, be, and the same is hereby
 23 amended to read as follows:

24 ~~39-7416~~ 39-7417. STANDARDS FOR POST-CLOSURE CARE. (1) ~~Applicability.~~
 25 Post-closure maintenance standards apply to all MSWLF units that receive
 26 wastes on or after October 9, 1993, except as provided by 40 CFR 258.1.

27 (2) Post-closure care shall be conducted as provided ~~under~~ in 40 CFR
 28 258.61.

29 (3) The review and approval process for a post-closure care plan shall
 30 be conducted pursuant to this chapter.

31 SECTION 22. That Section 39-7417, Idaho Code, be, and the same is hereby
 32 amended to read as follows:

33 ~~39-7417~~ 39-7418. FINANCIAL ASSURANCE FOR CLOSURE, POST-
 34 CLOSURE CARE, AND CORRECTIVE ACTION. (1) ~~Applicability.~~ These requirements
 35 shall apply to new MSWLF units, existing MSWLF units, and lateral expan-
 36 sions, except as exempted in 40 CFR 258.1(d) and 258.70(a).

37 (2) The requirements of this section are effective April 9, 1995, ex-
 38 cept for MSWLF units meeting the conditions of 40 CFR 258.1(f)(1), in which
 39 case the effective date is October 9, 1995, or at such later date upon subse-
 40 quent amendment of 40 CFR 258.70 through 258.74.

41 (3) All MSWLF units shall be underwritten by financial assurance provi-
 42 sions as provided by the following:

43 (a) Closure as provided in 40 CFR 258.71;

44 (b) Post-closure care as provided in 40 CFR 258.72; and

45 (c) Corrective action as provided in 40 CFR 258.73.

1 (4) The financial assurance mechanisms provided for MSWLF units shall
 2 include any mechanism or a combination of mechanisms meeting the criteria of
 3 40 CFR 258.74.

4 (5) Counties may use available borrowing capability through registered
 5 warrants for a prearranged amount and preapproved by a lending institution
 6 as a financial mechanism to assure assessment monitoring and corrective ac-
 7 tion needs.

8 (6) Subdivisions of the state may use any method provided by law to meet
 9 the requirements of this section.

10 (7) MSWLF units owned or operated by subdivisions of the state that
 11 qualify under 40 CFR 258.74(f) may include any mechanism allowed to them upon
 12 adoption and publication.

13 (8) Financial assurance funds for MSWLF units not located on federal or
 14 state lands shall be deposited in a county trust fund in the county in which
 15 the MSWLF unit is located. The county shall act as the trustee for the trust
 16 funds, and as named coprincipal for surety bonds, letters of credit, and in-
 17 surance. As trustee, the county may require an independent audit of the ad-
 18 equacy of the financial assurance but shall not become liable for financial
 19 assurance except in the case of default as otherwise defined by federal and
 20 state law.

21 (9) The review and approval process for a financial assurance plan
 22 shall be conducted pursuant to this chapter.

23 SECTION 23. That Section 39-7418, Idaho Code, be, and the same is hereby
 24 amended to read as follows:

25 ~~39-7418~~ 39-7419. MODIFICATIONS TO SITES APPROVED UNDER THIS CHAP-
 26 TER. (1) The following ~~classes of~~ modifications to approved sites shall
 27 ~~require that an owner or operator amend the approved design or ground water~~
 28 ~~monitoring program be considered major modifications:~~

29 (a) Lateral expansion ~~outside the approved waste management unit~~
 30 ~~boundary design;~~

31 (b) Unpredictable change affecting any environmental monitoring pro-
 32 gram;

33 (c) Change of liner design, if not equivalent to the approved prelimi-
 34 nary design's liner design; ~~or~~

35 (d) A modification of the design or operation due to initiation of cor-
 36 rective action and remediation; ~~or~~

37 (e) Any change to operation or design that, as determined by a quali-
 38 fied professional and affirmed by the director, may appear to result in
 39 an increased risk to human health or the environment.

40 (2) The following modifications shall be considered minor modifica-
 41 tions:

42 (a) Waste processing methodologies;

43 (b) Installation or decommissioning of landfill gas extraction or
 44 ground water monitoring wells;

45 (c) Alternative daily cover practices;

46 (d) Solid waste diversion programs; or

47 (e) Other actions or modifications that, as determined by a qualified
 48 professional and affirmed by the director, will not result in an in-
 49 creased risk to human health or the environment.

1 (3) The director may further define the scope of subsections (1) and (2)
2 of this section by rule or other official policy document.

3 ~~(2) The scope of new investigations and plan amendment shall be defined~~
4 ~~by the owner, director and health district before any modification to the de-~~
5 ~~cision is begun. Only those stages of the applicable approval process af-~~
6 ~~ected by the request for modification shall be required.~~

7 (4) The owner or operator of a facility shall apply to and obtain ap-
8 proval from the director prior to implementing a major or minor modifica-
9 tion.

10 (5) (a) An applicant may request, in writing, that the director provide
11 a preliminary determination on whether a modification is major or mi-
12 nor. Such preliminary determination shall not prohibit the director
13 from making a different determination after reviewing a formal major or
14 minor modification application.

15 (b) The director shall provide a preliminary decision within fourteen
16 (14) days of receiving the request if the request is submitted with a
17 summary of the proposed changes. If no such summary is provided, the
18 director shall provide a preliminary decision within twenty-eight (28)
19 days of receiving the request.

20 (6) The review and approval process for a major or minor modification
21 application shall be conducted pursuant to this chapter.

22 (a) Notice of a rejected minor modification application shall be sent
23 with empirical evidence that the modification will increase the risk to
24 human health or the environment.

25 (b) An applicant may appeal any rejection or condition of modification
26 pursuant to the procedures provided in this chapter.

27 (7) Approved and implemented major and minor modifications shall be ac-
28 counted for in the operations plan when the plan is submitted for recertifi-
29 cation. Such modifications may be accounted for prior to recertification by
30 submitting an operations plan amendment with the director for review and ap-
31 proval pursuant to this chapter.

32 SECTION 24. That Chapter 74, Title 39, Idaho Code, be, and the same is
33 hereby amended by the addition thereto of a NEW SECTION, to be known and des-
34 ignated as Section 39-7420, Idaho Code, and to read as follows:

35 39-7420. REVIEW, APPROVAL, AND RECONCILIATION PROCESSES -- GENERAL
36 PROVISIONS. (1) A prospective applicant may request to meet with the de-
37 partment to discuss applicable standards, schedules, processes, potential
38 concerns, and other information relevant to submitting an application pur-
39 suant to the provisions of this chapter.

40 (2) (a) Wherever technical evaluation of relevant information is re-
41 quired during the application process, a qualified professional, as
42 appropriate, shall certify compliance with the applicable standards.

43 (b) The director shall accept certification by a qualified profes-
44 sional that standards have been met upon presentation of the profes-
45 sional's certification of compliance and presentation of a written
46 explanation of operational practices that will be undertaken to meet
47 applicable standards.

48 (3) Failure of the department or director to adhere to the statutory
49 deadlines provided for in this chapter shall constitute:

- 1 (a) Notice that an application is determined to be complete; or
- 2 (b) Approval of an application.
- 3 (4) At any time in the review or reconciliation process, the applicant
- 4 and director may agree, in writing, to:
- 5 (a) Extend any of the statutory time frames provided for in this chap-
- 6 ter; or
- 7 (b) Enter into mediation or arbitration.
- 8 (5) Upon receipt of notice of approval, the applicant shall cause no-
- 9 tice to be published pursuant to this chapter, informing the public of such
- 10 approval.

11 SECTION 25. That Chapter 74, Title 39, Idaho Code, be, and the same is
 12 hereby amended by the addition thereto of a NEW SECTION, to be known and des-
 13 ignated as Section 39-7421, Idaho Code, and to read as follows:

14 39-7421. PUBLIC REVIEW AND APPROVAL PROCESS. (1) The process set forth
 15 in this section applies to the following applications:

- 16 (a) Site certifications;
- 17 (b) Preliminary designs;
- 18 (c) New operations plans;
- 19 (d) Major modifications; and
- 20 (e) Research, development, and demonstration permits and permit re-
- 21 newals.
- 22 (2) Within fourteen (14) days of receiving an application, the depart-
- 23 ment shall notify the applicant, in writing, that the application is com-
- 24 plete or incomplete.
- 25 (a) If the application is deemed incomplete by the department, the no-
- 26 tice shall:
 - 27 (i) Explain the application's deficiencies;
 - 28 (ii) Identify applicable standards, requirements, and other in-
 - 29 formation relied on by the department in determining that the ap-
 - 30 plication is incomplete;
 - 31 (iii) Inform the applicant that the application can be resubmitted
 - 32 pursuant to this section; and
 - 33 (iv) State that the applicant may request a meeting with the de-
 - 34 partment to review the application, its deficiencies, and solu-
 - 35 tions thereto.
- 36 (b) Incomplete applications can be resubmitted within one (1) year of
- 37 the date on the department's notice. The resubmitted application shall
- 38 address all deficiencies identified in the notice. The department
- 39 shall have fourteen (14) days to review the resubmitted application.
- 40 If the department determines that deficiencies remain, the department
- 41 shall notify the applicant, in writing, that the application has been
- 42 rejected and shall include in such notice an explanation of the defi-
- 43 ciencies and information relied on in making such determination.
- 44 (3) (a) Upon receipt of the department's determination that an applica-
- 45 tion is complete, the applicant shall:
 - 46 (i) Cause notice to be published in a newspaper of general circu-
 - 47 lation in the county where the facility is located, or proposed to
 - 48 be located, once a week for two (2) consecutive weeks;

(ii) Cause notice to be posted in the immediate vicinity of the facility or proposed facility during the publication and public comment period;

(iii) Provide written notice to the county in which the facility or proposed facility is located; and

(iv) Provide a copy of such notices to the department within five (5) business days of the second publication.

(b) The notice shall include:

(i) The name and location of the facility or proposed facility;

(ii) A general description of the proposed operations or modifications;

(iii) The place where the application may be reviewed; and

(iv) Instructions directing the public to submit comments to the department within thirty-five (35) days of the date of the second publication.

(4) Within fourteen (14) days of the end of the public comment period, the department shall provide the applicant with all of the public comments received by the department and may provide comments of its own. The applicant may provide the department with a response to the comments within twenty-one (21) days of receiving the comments from the department.

(5) Within seventy (70) days of the end of the public comment period, the director shall notify the applicant, in writing, that the application has been accepted or rejected.

(a) When reviewing an application, the director shall:

(i) Consider all of the comments received, including the department's and the applicant's, if provided; and

(ii) Defer to the opinion of the applicant's qualified professionals, unless there is reliable empirical evidence that the affirmations in the application are erroneous.

(b) An application shall be approved if the director determines that all applicable standards, requirements, and criteria of applicable law, rules, and regulations have been satisfied.

(c) A rejected application shall be accompanied by written findings that thoroughly explain the reason for rejecting the application and provide the rationale, evidence, applicable standards, requirements, and information relied on by the director in rejecting the application.

SECTION 26. That Chapter 74, Title 39, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 39-7422, Idaho Code, and to read as follows:

39-7422. ADMINISTRATIVE REVIEW AND APPROVAL PROCESS. (1) The process set forth in this section applies to the following applications:

(a) Final design reports;

(b) Ground water monitoring plans;

(c) Operations plan recertifications or amendments;

(d) Closure plans;

(e) Post-closure care plans;

(f) Financial assurance plans; and

(g) Minor modifications.

1 (2) Within fourteen (14) days of receiving an application, the depart-
 2 ment shall notify the applicant, in writing, that the application is com-
 3 plete or incomplete.

4 (a) If the application is deemed incomplete by the department, the no-
 5 tice shall:

6 (i) Explain the application's deficiencies;

7 (ii) Identify applicable standards, requirements, and other in-
 8 formation relied on by the department in determining that the ap-
 9 plication is incomplete;

10 (iii) Inform the applicant that the application can be resubmitted
 11 pursuant to this section; and

12 (iv) State that the applicant may request a meeting with the de-
 13 partment to review the application, its deficiencies, and solu-
 14 tions thereto.

15 (b) Incomplete applications can be resubmitted within six (6) months of
 16 the date on the department's notice. The resubmitted application shall
 17 address all deficiencies identified in the notice. The department
 18 shall have fourteen (14) days to review the resubmitted application.
 19 If the department determines that deficiencies remain, the department
 20 shall notify the applicant, in writing, that the application has been
 21 rejected and shall include in such notice an explanation of the defi-
 22 ciencies and information relied on in making such determination.

23 (3) Within thirty-five (35) days of the date on the notice of a complete
 24 application, the director shall notify the applicant, in writing, that the
 25 application has been accepted or rejected.

26 (a) When reviewing an application, the director shall defer to the
 27 opinion of the applicant's qualified professionals, unless there is
 28 reliable empirical evidence that the affirmations in the application
 29 are erroneous.

30 (b) An application shall be approved if the director determines that
 31 all applicable standards, requirements, and criteria of applicable lo-
 32 cal, state, and federal law, rules, and regulations have been satis-
 33 fied.

34 (c) A rejected application shall be accompanied by written findings
 35 that thoroughly explain the reason for rejecting the application and
 36 provide the rationale, evidence, applicable standards, requirements,
 37 and information relied on by the director in rejecting the application.

38 SECTION 27. That Chapter 74, Title 39, Idaho Code, be, and the same is
 39 hereby amended by the addition thereto of a NEW SECTION, to be known and des-
 40 ignated as Section 39-7423, Idaho Code, and to read as follows:

41 39-7423. RECONCILIATION PROCESS -- ADMINISTRATIVE AND JUDICIAL RE-
 42 VIEW. (1) Upon notice of application rejection, an automatic twenty-one (21)
 43 day stay of proceedings shall commence, unless such stay is waived by the
 44 applicant in writing.

45 (2) If, at any point during the stay, the director determines that a
 46 reconciled application satisfies all of the applicable standards, require-
 47 ments, and criteria of applicable local, state, and federal law, rules, and
 48 regulations, the director shall issue a notice of approval.

49 (3) Upon waiver or expiration of the stay:

1 (a) The director shall provide the applicant with a written notice
2 that:

- 3 (i) Informs the applicant that the application remains rejected;
- 4 (ii) Includes a revised explanation of the rationale and basis for
- 5 rejection; and
- 6 (iii) Informs the applicant that the applicant is entitled to ju-
- 7 dicial review pursuant to this section and chapter 52, title 67,
- 8 Idaho Code; and

9 (b) The applicant, the department, and affected persons are entitled
10 to judicial review pursuant to chapter 52, title 67, Idaho Code. If ju-
11 dicial review is sought by the applicant or director, the parties shall
12 stipulate to accelerated judicial review pursuant to court approval
13 when the ordinary review period provided in chapter 52, title 67, Idaho
14 Code, may reasonably result in substantial increased costs to the ap-
15 plicant, potential violations of federal or state environmental laws,
16 or threats to public health and the environment.

17 SECTION 28. That Chapter 74, Title 39, Idaho Code, be, and the same is
18 hereby amended by the addition thereto of a NEW SECTION, to be known and des-
19 ignated as Section 39-7424, Idaho Code, and to read as follows:

20 39-7424. SOLID WASTE DISPOSAL FEES. (1) In order to facilitate the
21 department assuming the responsibility for the activities formerly the
22 responsibility of the various public health districts, it is necessary to
23 impose a system of fees upon each municipal solid waste disposal facility
24 or site authorized pursuant to this chapter, or other disposal facility
25 authorized by the director, to support the additional regulatory responsi-
26 bilities of the department. Costs and expenses incurred by the department
27 in performing the duties provided for in this chapter that were formerly the
28 responsibility of the various public health districts shall be paid out of
29 the solid waste regulatory fund created in this chapter. The fees imposed
30 pursuant to this section shall apply to all solid waste disposed of in an
31 MSWLF located within this state, whether disposal remains in state or is
32 exported out of state, and regardless of whether such waste is subsequently
33 mined or otherwise recovered for items of value.

34 (2) Each facility subject to regulation pursuant to this chapter shall
35 pay an annual inspection fee.

36 (a) MSWLFs shall pay an annual inspection fee of four thousand dollars
37 (\$4,000).

38 (b) All other solid waste facilities shall pay an annual inspection fee
39 in an amount to be established by the director.

40 (3) In addition to the annual inspection fee, a tonnage fee of seven
41 cents (\$0.07) per ton of solid waste shall be imposed. The tonnage fee shall
42 be assessed only on:

43 (a) Solid waste disposed of at an MSWLF in the state of Idaho; and

44 (b) Solid waste accepted at a transfer station and transported for dis-
45 posal at an MSWLF located outside the state of Idaho.

46 (4) Applicants shall pay an application fee in an amount to be estab-
47 lished by the director at the time of submitting an application to the de-
48 partment. Application fees are intended to promote accountability by ensur-
49 ing complete and accurate submittal and not to cover the full costs incurred

1 by the department when carrying out its duties during application review and
2 administration.

3 (5) The legislature shall reevaluate the sufficiency of this section's
4 fee amounts in the 2030 legislative session and shall adjust the fees accord-
5 ingly, if necessary.

6 SECTION 29. That Chapter 74, Title 39, Idaho Code, be, and the same is
7 hereby amended by the addition thereto of a NEW SECTION, to be known and des-
8 ignated as Section 39-7425, Idaho Code, and to read as follows:

9 39-7425. COLLECTION OF FEES AND REPORTING. (1) The annual inspection
10 fee shall be due and payable on or before October 31 of each year. The de-
11 partment may adopt rules for pro-rating the annual inspection fee for new or
12 closed facilities.

13 (2) The tonnage fees shall be due and payable in monthly installments by
14 the owner, operator, or designated employee or agent of such disposal facil-
15 ity or site.

16 (a) On or before the thirtieth day following the end of each monthly
17 period in which the fee imposed pursuant to this chapter accrued, the
18 owner, operator, or designated employee or agent shall file a return
19 with the department on such forms as the department may require. The re-
20 turn shall be signed and shall include:

21 (i) The quantity of waste in tons for facilities with scales;

22 (ii) The quantity of waste in tons, using five hundred (500)
23 pounds per cubic yard, for facilities exempt from having scales;

24 (iii) The amount of the fee for which the owner or operator is li-
25 able for the preceding monthly period; and

26 (iv) The remittance for such amount in such form required by the
27 department.

28 (b) The department may relieve any person from the obligation of fil-
29 ing monthly returns and may instead require the return to cover other
30 reporting periods, but in no event shall returns be filed for a period
31 greater than three (3) months.

32 SECTION 30. That Chapter 74, Title 39, Idaho Code, be, and the same is
33 hereby amended by the addition thereto of a NEW SECTION, to be known and des-
34 ignated as Section 39-7426, Idaho Code, and to read as follows:

35 39-7426. SOLID WASTE REGULATORY FUND. (1) There is hereby created and
36 established in the state treasury the solid waste regulatory fund.

37 (2) The fund shall consist of revenues from the fees imposed by this
38 chapter, together with any penalties, interest, or deficiency moneys col-
39 lected by the department pursuant to the provisions of this chapter, and such
40 other moneys that may be provided by legislative appropriation.

41 (3) Moneys in the fund and all interest earned thereon shall be kept in
42 the solid waste regulatory fund and shall be expended by the department for
43 the technical, legal, inspection, and administrative support necessary for
44 implementing this chapter and rules promulgated to meet requirements of this
45 chapter and applicable federal regulations.

SECTION 31. That Section 39-7419, Idaho Code, be, and the same is hereby amended to read as follows:

~~39-7419~~ 39-7427. INSPECTIONS. (1) All MSWLF units shall be subject to routine inspection by the ~~county, owner and director and health district~~ in accordance with relevant provisions of the Idaho Code.

~~(2) At intervals of not less than three (3) years, nor more than five (5) years, the owner, county, director and health district shall jointly conduct a comprehensive review of the MSWLF unit for provisions contained in this chapter, technical guidance, other provisions, and the plan for design and operation, as amended. A record of the review shall be placed in the operating record of the MSWLF unit which shall be maintained by the owner and the health district with jurisdiction. Operating procedures shall be recertified at intervals of no more than three (3) years.~~

(2) (a) Facilities subject to the imposition of the fees provided for in this chapter shall keep complete and accurate records, including certified scale or volume data as identified in this chapter, itemized invoices, shipping papers, and manifests for all types and quantities of solid waste subject to the fees imposed by this chapter.

(b) All books, documents, papers, electronic records, and other information required to be kept by this section shall be preserved for a period of at least five (5) years from the date of the record or the date of the entries appearing therein, unless the department, in writing, authorizes their destruction or disposal at an earlier date.

(3) An authorized agent or employee of the department may enter any facility or site subject to the provisions of this chapter during normal business hours and inspect the premises and records required to be kept pursuant to this section to determine whether the facility or site is in compliance with provisions of this chapter and rules promulgated to meet requirements of this chapter and applicable federal law and regulations.

(4) Every three (3) to five (5) years, the owner and director shall jointly conduct a comprehensive inspection of the facility and review of the designs and plans to evaluate compliance with the applicable laws and regulations, identify areas of improvement, and provide technical guidance. A record of the review shall be kept at the facility and by the director.

(5) The director shall inspect ground water monitoring reports and financial assurance documentation annually.

SECTION 32. That Chapter 74, Title 39, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 39-7428, Idaho Code, and to read as follows:

39-7428. ADDITIONS AND PENALTIES. The additions, penalties, and requirements provided by the Idaho income tax act, sections 63-3046, 63-3075, 63-3076, and 63-3077, Idaho Code, shall apply in the same manner and to the same extent to this chapter as to the Idaho income tax act and shall cover such additions, penalties, and requirements and shall, for this purpose, be described and be for acts, omissions, delinquencies, and requirements provided in this chapter.

SECTION 33. That Section 39-7420, Idaho Code, be, and the same is hereby amended to read as follows:

~~39-7420~~ 39-7429. VIOLATIONS AND ENFORCEMENT. (1) Failure to comply with the requirements established in this chapter, requirements of rules established pursuant to this chapter, and reasonable conditions of approval granted pursuant to this chapter shall be unlawful. Particularly with respect to siting and operation of a municipal solid waste landfill to satisfy the requirements of chapter 44, title 31, Idaho Code, enforcement should focus ~~upon~~ on remediation of deficiencies, rather than punishment. Penalties should be imposed where practices show disregard for protection of human health, safety, and the environment.

(2) Each public agency with responsibility for enforcement of requirements established in this chapter may inspect, monitor, and employ such methods of enforcement as they may be empowered to use by statute or local ordinance.

~~(a)~~ (3) The director ~~may~~ shall apply the provisions of section 39-108, Idaho Code, to ~~insure~~ ensure compliance.

(4) The collection and enforcement procedures available to the Idaho state tax commission provided by the Idaho income tax act, sections 63-3030A, 63-3038, 63-3039, 63-3040, 63-3042 through 63-3045A, 63-3047 through 63-3065A, 63-3068, 63-3071, 63-3072, 63-3073, and 63-3078, Idaho Code, shall apply and be available to the department for the enforcement of the solid waste disposal fees and for the assessment and collection of any amounts due thereunder. Said sections shall, for the aforementioned purposes, be considered part of this chapter and wherever liens or any other proceedings are defined as income tax liens or proceedings, they shall, when applied under this chapter, be described as solid waste disposal fee liens and proceedings.

~~(b)~~ (5) ~~The respective health districts or the several counties director~~ may employ the use of negotiated compliance agreements, in addition to civil legal remedies and misdemeanor criminal penalties otherwise authorized, in order to obtain compliance ~~with requirements established herein~~.

~~(3)~~ (6) Where more than one (1) public entity undertakes enforcement efforts to obtain compliance with the provisions of this chapter, enforcement efforts should be coordinated to the greatest extent possible to minimize conflict among requirements and costs of compliance.

~~(4)~~ (7) A private right of action ~~in~~ on behalf of any person who has been injured or damaged by any approval authorized in this chapter or violation of the terms of any approval or regulation authorized in this chapter may be maintained in accordance with the provisions of this chapter and ~~or the provisions of chapter 52, title 67, Idaho Code, as applicable~~.

~~(5)~~ ~~If a district fails to carry out responsibilities established in this chapter, the director may assume the authority otherwise to be implemented by a district.~~

(8) The department may be made a party in any action at law or in equity related to this chapter by any person aggrieved by the unlawful seizure or sale of his property, or in any suit for refund or to recover an overpayment, but only the state of Idaho shall be responsible for any final judgment

1 secured against the department, and said judgment shall be paid or satisfied
 2 out of the general fund of the state.

3 SECTION 34. That Section 39-7421, Idaho Code, be, and the same is hereby
 4 amended to read as follows:

5 ~~39-7421~~ 39-7430. RESEARCH, DEVELOPMENT, AND DEMONSTRATION PER-
 6 MITS. (1) The provisions of 42 U.S.C. 6945(c)(1)(B) and 40 CFR 258 allow
 7 the administrator of the United States environmental protection agency to
 8 approve state research, development, and demonstration permit programs.

9 (2) The director shall initiate the process outlined in 40 CFR 239 by
 10 which the state may receive authorization to issue research, development,
 11 and demonstration (RDD) permits in compliance with 40 CFR 258.4 at such time
 12 as:

13 (a) The department receives a request from any individual who expresses
 14 an intent to apply for an RDD permit; and

15 (b) The department and requesting individual enter into a written
 16 agreement in which the requesting individual agrees to reimburse the
 17 department for the reasonable and necessary cost to make such applica-
 18 tion.

19 (3) Upon receipt of state authorization to issue such permits, the di-
 20 rector may issue an RDD permit for a new MSWLF unit, existing MSWLF unit, or
 21 lateral expansion for which the owner or operator proposes to utilize inno-
 22 vative and new methods which vary from either or both of the following crite-
 23 ria:

24 (a) The run-on control systems required by ~~section 39-7412(7)(a),~~
 25 ~~Idaho Code~~ this chapter; and

26 (b) The liquid restrictions ~~in section 39-7412(8), Idaho Code~~ pursuant
 27 to this chapter.

28 (4) Any permit issued under subsection (3) of this section shall in-
 29 clude the following terms and conditions:

30 (a) The MSWLF unit shall have a leachate collection system designed
 31 and constructed to maintain less than a thirty (30) centimeter depth of
 32 leachate on the liner;

33 (b) Any liquids to be recirculated, injected or otherwise placed in
 34 the MSWLF unit shall be appropriate for the purposes of determining the
 35 efficacy and performance capabilities of the technology or process and
 36 shall be approved by the director;

37 (c) The MSWLF unit owner or operator shall install and operate a land-
 38 fill gas collection and control system in accordance with emission con-
 39 trol requirements ~~as~~ specified in 40 CFR part 60, and, when collected
 40 in economically feasible volumes, landfill gas shall be used for energy
 41 generation.

42 (5) Upon receipt of state authorization to issue such permits, the di-
 43 rector may issue an RDD permit for a new MSWLF unit, existing MSWLF unit,
 44 or lateral expansion, for which the owner or operator proposes to utilize
 45 innovative and new methods which vary from the final cover criteria of 40
 46 CFR 258.60 (a) (1), (a) (2) and (b) (1) provided the landfill owner or operator
 47 demonstrates that the infiltration of liquid will not cause contamination of
 48 ground water or surface water, or cause leachate depth on the liner to exceed
 49 thirty (30) centimeters.

1 (6) Any permit issued under the provisions of this section shall in-
 2 clude terms and conditions at least as protective as the criteria for MSWLFs
 3 to assure protection of human health and the environment. Such permits
 4 shall:

5 (a) Provide for the construction and operation of such facilities as
 6 necessary, for not longer than three (3) years, unless renewed as pro-
 7 vided in subsection (8) of this section;

8 (b) Provide that the MSWLF unit must receive only those types and quan-
 9 tities of ~~municipal~~ solid waste and nonhazardous wastes which the di-
 10 rector deems appropriate for the purposes of determining the efficacy
 11 and performance capabilities of the technology or process;

12 (c) Include such requirements as necessary to protect human health and
 13 the environment, including such requirements as necessary for testing
 14 and providing information to the director with respect to the operation
 15 of the facility;

16 (d) Require the owner or operator of ~~a~~ an MSWLF unit permitted under
 17 this section to submit an annual report to the director showing whether
 18 and to what extent the site is progressing in attaining project goals.
 19 The report shall also include a summary of all monitoring and testing
 20 results, as well as any other operating information specified by the di-
 21 rector in the permit. Annual reports shall be submitted to the director
 22 within three (3) months after the anniversary date of the approved per-
 23 mit or permit renewal; and

24 (e) Require compliance with all criteria in chapter 74, title 39, Idaho
 25 Code, except as permitted under this section.

26 (7) The director may order an immediate termination of all operations
 27 at the facility allowed under this section or other corrective measures at
 28 any time the director determines that the overall goals of the project are
 29 not being attained including, but not limited to, protection of human health
 30 or the environment.

31 (8) Any permit issued under the provisions of this section shall not ex-
 32 ceed three (3) years and each renewal of a permit shall not exceed three (3)
 33 years.

34 (a) The total term for a permit for a project, including renewals, shall
 35 not exceed ~~twelve (12)~~ twenty-one (21) years.

36 (b) During permit renewal, the applicant shall provide a detailed as-
 37 sessment of the project showing the status with respect to achieving
 38 project goals, a list of problems and status with respect to problem
 39 resolutions, and any other requirements that the director determines
 40 necessary for permit renewal.

41 (c) Owners or operators requesting permit renewal shall submit the per-
 42 mit renewal application to the director at least six (6) months prior to
 43 the existing permit's expiration date.

44 (9) It shall be unlawful to begin construction to implement or other-
 45 wise utilize the exemptions provided in this section without first receiv-
 46 ing a permit from the director. Permit applications will be processed in the
 47 following manner:

48 (a) The director shall review the RDD permit application and each
 49 subsequent permit renewal in the same manner as the director reviews
 50 requests for design approval pursuant to ~~section 39-7411, Idaho Code~~

1 this chapter. An applicant shall provide information in the permit ap-
 2 plication in sufficient detail to address design, operating, closure,
 3 ~~post-closure~~ post-closure and financial assurance requirements.

4 (b) Each permit application and permit renewal application shall re-
 5 quire the owner or operator to certify to the director that the infor-
 6 mation contained in the application is, to the best of his or her knowl-
 7 edge, accurate and true, and the MSWLF unit is in compliance with appli-
 8 cable law.

9 (10) Permit review and oversight costs incurred by the department of
 10 ~~environmental quality, or "department," and health district~~ shall be re-
 11 imbursed by the applicant or permittee. Reimbursable review and oversight
 12 costs shall include, but are not limited to:

13 (a) Reasonable costs associated with the director's review of a permit
 14 application submitted pursuant to this section, including department
 15 staff time and the cost of goods and services contracted by the depart-
 16 ment in performance of the activities described in this section;

17 ~~(b) Reasonable costs associated with the health district's review of~~
 18 ~~portions of a permit application submitted pursuant to this section~~
 19 ~~when such review is delegated to the health district by statute, rule,~~
 20 ~~or agreement with the director;~~

21 ~~(c) (b)~~ Reasonable costs associated with the department's and health
 22 district's oversight of permitted RDD units, including inspections and
 23 the review of annual reports, monitoring, and testing results required
 24 pursuant to this section or required by permit, and the processing of
 25 permit amendments and terminations; and

26 ~~(d) (c)~~ All other reasonable and necessary costs of actions taken by the
 27 department pursuant to this section.

28 (11) Reimbursable review and oversight costs incurred by the department
 29 ~~and health district~~, as defined in subsection (10) of this section, shall be
 30 reimbursed as follows:

31 (a) Each permit application submitted to the director pursuant to this
 32 section shall be accompanied by a nonrefundable fee of two hundred fifty
 33 dollars (\$250) and an estimation of reimbursable review and oversight
 34 costs the department ~~and health district~~ may incur associated with the
 35 review of the permit application and oversight of the permit. Each per-
 36 mit renewal application submitted to the director pursuant to this sec-
 37 tion shall be accompanied by a nonrefundable fee of one hundred dollars
 38 (\$100) and an estimation of reimbursable review and oversight costs the
 39 department ~~and health district~~ may incur associated with the review and
 40 oversight of the permit renewal.

41 (b) If the department, ~~in consultation with the health district~~, de-
 42 termines that the applicant's estimation of reimbursable review and
 43 oversight costs is accurate, and the submission of such funds will ad-
 44 equately reimburse the department ~~and the health district~~ for the cost
 45 of all review and oversight activities associated with that permit
 46 application or renewal application, the department shall notify the
 47 applicant, and the applicant shall submit to the department the full
 48 amount, or an installment deposit in the amount required pursuant to
 49 this subsection.

(c) If the department, ~~in consultation with the health district,~~ determines that the applicant's estimation of reimbursable review and oversight costs is not accurate, and the submission of such funds will not adequately reimburse the department ~~and the health district~~ for the cost of all review and oversight activities associated with that permit application or renewal application, the department shall notify the applicant and the application shall be returned to the applicant.

(d) Upon receipt of funds in the amount estimated by the applicant and concurred to by the department ~~and health district,~~ or receipt of an installment deposit in the amount required under this subsection, the director shall initiate permit application review or permit renewal review.

(e) Once the department ~~and the health district concur~~ concurs with an applicant's estimation of reimbursable review and oversight costs, and the department provides the applicant notice thereof, a permit applicant or permit renewal applicant may submit to the department the reimbursement funds in their entirety or an installment deposit of two thousand five hundred dollars (\$2,500). Should funding be required for costs incurred in excess of the initial two thousand five hundred dollar (\$2,500) deposit, the department shall notify the applicant of required successive deposits in the amount of two thousand five hundred dollars (\$2,500). ~~The department shall pass along funds collected on behalf of the health district for reimbursable review and oversight costs incurred by such district within sixty (60) days of receipt of such funds from the applicant, or within sixty (60) days of receipt of a certified request for such funds from the health district, whichever is later.~~ Any unused portion of the reimbursement funds, deposit, or successive deposit shall be returned to the applicant within sixty (60) days of the director's final decision to issue or deny a permit or permit renewal pursuant to this section. If the applicant fails to submit a successive deposit, the department shall suspend review of the permit application or renewal application, and the director shall be relieved of any applicable statutory or regulatory permit application or renewal application review deadlines during the review suspension.

(f) The director shall, as a condition of renewal, require renewal applicants to reimburse the department for previously uncaptured reimbursable permit review and oversight costs incurred by the department ~~or health district~~ during the prior permit term.

(g) Upon request, the department shall provide documentation to the applicant to aid in the development of the applicant's estimation of reimbursable review and oversight costs or to support the department's claims ~~and any health district claims~~ for such reimbursement.

(h) Funds submitted to the department pursuant to this section shall not be returned if a permit application is terminated, withdrawn, returned, or denied unless the funds, or some portion thereof, have not been used by the department ~~or health district~~ as of the date of the termination, withdrawal, return, or denial.

(12) A permit issued pursuant to this section may be transferred only to a new owner or operator of the permitted MSWLF. The new owner or operator shall submit to the director, in writing, a request for permit transfer. The

request shall include a statement that the new owner or operator will comply with all terms and conditions of the permit. Upon transfer of the permit, the new owner or operator shall be responsible for compliance with all terms and conditions of the permit, and shall be subject to enforcement of such terms and conditions.

(13) The following MSWLF units are not eligible for a permit issued pursuant to this section:

(a) MSWLF units operating under an exemption set forth in ~~section 39-7409(2)(c), Idaho Code~~ this chapter.

(b) MSWLF units operating under an exemption set forth in 40 CFR 258.1(f).

(c) MSWLF units that dispose of twenty (20) tons of solid waste per day or less, based on an annual average, are not eligible for a variance from 40 CFR 258.60(b)(1), except in accordance with 40 CFR 258.60(b)(3).

(d) MSWLF units that have exceeded ground water protection standards at statistically significant levels as specified in ~~section 39-7410(4)(a), Idaho Code~~ this chapter, from any waste unit on site and have not implemented a remedy in accordance with ~~section 39-7414, Idaho Code~~ this chapter, prior to RDD permit application submittal.

(e) MSWLF units that have landfill gas concentration exceedances, as specified in ~~section 39-7412(4), Idaho Code~~ this chapter, from any waste unit on site and have not implemented a remedy in accordance with ~~section 39-7412(4), Idaho Code~~ this chapter, prior to RDD permit application submittal.

(14) Owners or operators of MSWLF units circulating leachate or gas condensate derived from the MSWLF unit in compliance with ~~section 39-7412(8), Idaho Code~~ this chapter, and 40 CFR 258.28, and not implementing or otherwise utilizing an exemption under this section, are not required to comply with the requirements of this section.

(15) An applicant or permittee may appeal any final decision made by the director under this section by filing a request for hearing in accordance with rules promulgated by the department governing contested cases, or in the absence of such rules, in accordance with the procedures in chapter 52, title 67, Idaho Code.

SECTION 35. That Section 39-107D, Idaho Code, be, and the same is hereby amended to read as follows:

39-107D. RULES OF DEPARTMENT OR BOARD. (1) The legislature directs that any rule formulated and recommended by the department to the board which is broader in scope or more stringent than federal law or regulations, or proposes to regulate an activity not regulated by the federal government, is subject to the following additional requirements: the notice of proposed rulemaking and rulemaking record requirements under chapter 52, title 67, Idaho Code, must clearly specify that the proposed rule, or portions of the proposed rule, are broader in scope or more stringent than federal law or regulations, or regulate an activity not regulated by the federal government, and delineate which portions of the proposed rule are broader in scope or more stringent than federal law or regulations, or regulate an activity not regulated by the federal government.

1 (2) To the degree that a department action is based on science, in
 2 proposing any rule or portions of any rule subject to this section, the de-
 3 partment shall utilize:

4 (a) The best available peer reviewed science and supporting studies
 5 conducted in accordance with sound and objective scientific practices;
 6 and

7 (b) Data collected by accepted methods or best available methods if the
 8 reliability of the method and the nature of the decision justify use of
 9 the data.

10 (3) Any proposed rule subject to this section which proposes a standard
 11 necessary to protect human health and the environment shall also include in
 12 the rulemaking record requirements under chapter 52, title 67, Idaho Code,
 13 the following additional information:

14 (a) Identification of each population or receptor addressed by an esti-
 15 mate of public health effects or environmental effects; and

16 (b) Identification of the expected risk or central estimate of risk for
 17 the specific population or receptor; and

18 (c) Identification of each appropriate upper bound or lower bound esti-
 19 mate of risk; and

20 (d) Identification of each significant uncertainty identified in the
 21 process of the assessment of public health effects or environmental ef-
 22 fects and any studies that would assist in resolving the uncertainty;
 23 and

24 (e) Identification of studies known to the department that support, are
 25 directly relevant to, or fail to support any estimate of public health
 26 effects or environmental effects and the methodology used to reconcile
 27 inconsistencies in the data.

28 (4) The department shall also include a summary of the information re-
 29 quired by subsection (3) of this section in the notice of rulemaking required
 30 by chapter 52, title 67, Idaho Code.

31 (5) Any rule promulgated or adopted by the board which is broader in
 32 scope or more stringent than federal law or regulations, or which regulates
 33 an activity not regulated by the federal government, submitted to the stand-
 34 ing committee of the legislature pursuant to section 67-5291, Idaho Code,
 35 shall include a notice by the board identifying the portions of the adopted
 36 rule that are broader in scope or more stringent than federal law or rules, or
 37 which regulate an activity not regulated by the federal government.

38 (6) Nothing provided herein is intended to alter the scope or effect of
 39 sections 39-105(3)(g) ~~(iv)~~, 39-118B, 39-3601, 39-4404, 39-7210 and 39-7404,
 40 Idaho Code, or any other provision of state law which limits or prohibits
 41 agency action or rulemaking that is broader in scope or more stringent than
 42 federal law or regulations.

43 SECTION 36. That Section 39-7204, Idaho Code, be, and the same is hereby
 44 amended to read as follows:

45 39-7204. PARTICIPATION. (1) To participate in the remediation program
 46 a person must submit an application to the department as described under sub-
 47 section (2) of this section.

48 (2) An application submitted under this section must meet the following
 49 conditions:

1 (a) Contain the following general information concerning:

2 (i) the person,

3 (ii) the site, and

4 (iii) other background information as requested by the depart-
5 ment;

6 (b) An environmental assessment that conforms to ASTM Standard Prac-
7 tice E 1527, as amended, or equivalent.

8 (3) Not more than thirty (30) days after receiving an application under
9 subsection (2) of this section, the department shall determine if the person
10 is eligible to participate in the remediation program under this chapter.

11 (4) The department may reject an application submitted under subsec-
12 tion (2) of this section for any of the following reasons:

13 (a) Remediation is required pursuant to sections 39-101 through
14 39-129, sections 39-4401 through 39-4432, or sections 39-7401 through
15 ~~39-7420~~ 39-7429, Idaho Code, or rules promulgated thereunder, or other
16 applicable statutory or common law; or

17 (b) The condition of the hazardous substance or petroleum described in
18 the application constitutes an imminent and substantial threat to human
19 health or the environment; or

20 (c) The application is not complete.

21 (5) If the application is rejected under subsection (4) (c) of this sec-
22 tion, the department shall provide the person with a list of all information
23 needed to make the application complete. If the department fails to comply
24 with this subsection, the application shall be considered completed for the
25 purposes of this chapter.

26 (6) If the department rejects an application, the department shall do
27 the following:

28 (a) Notify the person that the department rejected the application;

29 (b) Explain the reason the department rejected the application.

30 SECTION 37. An emergency existing therefor, which emergency is hereby
31 declared to exist, this act shall be in full force and effect on and after
32 July 1, 2026.